



Chick-fil-A West Acres

Chick-fil-A West Acres Employee Handbook

October 17, 2025

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Core Policies

1.0 Welcome

1.1 A Welcome Policy

Welcome! You have just joined a dedicated organization. We hope that your employment with Fivetwo LLC dba Chick-fil-A West Acres will be rewarding and challenging. We take pride in our Team Members as well as in the products and services we provide.

Fivetwo LLC dba Chick-fil-A West Acres (the "Company") complies with all federal and state employment laws, and this handbook generally reflects those laws. The Company also complies with any applicable local laws, even if there is not an express written policy regarding those laws contained in the handbook.

The employment policies and benefits summaries in this handbook are written for all Team Members. When questions arise concerning the interpretation of these policies as they relate to Team Members who are covered by a collective bargaining agreement, the answers will be determined by the union contract rather than the summaries in this handbook.

Please take time now to read this handbook carefully. Sign the acknowledgment at the end to show that you have read, understood, and agree to the contents of this handbook, which sets out the basic rules and guidelines for your employment. This handbook supersedes any previously issued handbooks or policy statements dealing with the subjects discussed here. The Company reserves the right to interpret, modify, or supplement the provisions of this handbook at any time. Neither this handbook nor any other communication by a management representative or others, whether oral or written, is intended to create a contract of employment. Please understand that no employee handbook can address every situation in the workplace.

If you have questions about your employment or any provisions in this handbook, contact sung.kim@cfafranchisee.com.

We wish you success in your employment here at Fivetwo LLC dba Chick-fil-A West Acres!

All the best,

Sung Kim, Owner/Operator
Fivetwo LLC dba Chick-fil-A West Acres

1.2 At-Will Employment

Your employment with **Fivetwo LLC dba Chick-fil-A West Acres** is on an *at-will* basis. This means your employment may be terminated at any time, with or without notice and with or without cause. Likewise, we respect your right to leave the Company at any time, with or without notice and with or without cause.

Nothing in this handbook or any other Company document should be understood as creating a contract, guaranteeing continued employment, creating a right to termination only "for cause," or providing any other guarantee of continued benefits or employment. Only the **Owner/Operator** has the authority to make promises or negotiate with regard to guaranteed or continued employment, and any such promises are only effective if placed in writing and signed by the **Owner/Operator**.

If a written contract between you and the Company is inconsistent with this handbook, the written contract is controlling.

Nothing in this handbook will be interpreted, applied, or enforced to interfere with, restrain, or coerce employees in the exercise of their rights under Section 7 of the National Labor Relations Act.

2.0 Introductory Language and Policies

2.1 About the Company

Fivetwo LLC is a business based in North Dakota, doing business as Chick-fil-A West Acres. As a locally owned and operated franchise, we are proud to be part of the Chick-fil-A brand, a company nationally recognized for excellence in hospitality, community engagement, and quality food.

Chick-fil-A was founded in 1967 by Truett Cathy with a vision of serving more than just chicken. The company has grown into one of the most respected restaurant brands in the country, known for its commitment to exceptional service, high-quality products, and values-driven business practices. Chick-fil-A consistently ranks at the top of customer satisfaction surveys, has received numerous awards for its operational excellence, and is widely regarded as a leader in the quick-service restaurant industry.

At Chick-fil-A West Acres, our mission is rooted in both service and leadership. We are committed to being a positive influence on all who come into contact with our restaurant, whether guests, employees, or members of the Fargo community. Our vision is clear: We encourage and care for our community by serving as exemplary role models of a servant leader.

Our vision is: to serve, make an impact, one by one.

Our values guide us in every decision and interaction:

- Integrity: We do what is right, no matter who is around or what it might cost us.
- Humility: At Chick-fil-A West Acres, humility means leading with a servant's heart. We believe that true leadership begins with putting others first, valuing every guest, team member, and partner above ourselves.
- Excellence: We pursue excellence to honor those we serve and to make a lasting impact.
- Empathy: We lead with compassion, valuing people over processes.
- Resiliency: We adapt, endure, and grow stronger through every challenge we face.

These values shape how we serve our guests, how we treat one another, and how we contribute to the Fargo community. By being part of Chick-fil-A West Acres, employees join not just a workplace, but a team with a vision to lead with purpose, compassion, and strength.

2.2 Company Facilities

Chick-fil-A West Acres Facilities & Security Guidelines

As a Team Member of **Fivetwo LLC dba Chick-fil-A West Acres**, you are expected to treat our facilities with care, respect, and professionalism. Maintaining a safe and secure restaurant environment is a shared responsibility.

Team Member Areas

- Only authorized Team Members and leadership are permitted in back-of-house areas (kitchen, office, behind the counter and storage rooms).
- Unknown persons should never be allowed in Team Member areas without proper clearance. If you encounter an unfamiliar individual, politely ask their purpose and immediately notify a leader on duty.

Personal Belongings

- Handbags, coats, and other personal valuables must be stored in the designated **Team Member area** during your shift. This space is provided for your convenience and to help maintain a clean and professional work environment. Please note that **Chick-fil-A West Acres is not responsible or liable** for any loss, theft, or damage to personal belongings left in the restaurant or Team Member area. We encourage all Team Members to bring only necessary items to work and to take appropriate precautions to safeguard their possessions. Being mindful and responsible for your own belongings helps us maintain a respectful and secure workplace for everyone.

Telephones and Communication

- Company telephones are for business use only. Outside callers should not be allowed access to telephones in Team Member areas.
- Personal cell phones should be used only during approved break times and in designated areas. Violation to this policy can lead to disciplinary actions including termination.

Deliveries

- All deliveries must be received by the Operator or a designated Leader on Duty.
- Do not sign for or accept any package you are unsure about.
- If a package or delivery seems suspicious, do not handle it. Immediately notify leadership and, if necessary, contact the appropriate authorities.

Store Access & Security

- All exterior doors should remain locked as appropriate, especially before opening and after closing.
- Once the restaurant has closed, no one is permitted to re-enter without prior authorization from the Operator or designated leadership.
- Report any unusual behavior, safety concerns, or security risks immediately.

Your Responsibility

By staying alert and following these guidelines, you are helping to protect yourself, your fellow Team Members, our Guests, and the restaurant as a whole. Security and safety are everyone's responsibility.

2.3 Ethics Code

Fivetwo LLC dba Chick-fil-A West Acres ("the Company") is committed to conducting business honestly, ethically, and in compliance with all applicable federal, state, and local laws. We strive to maintain a reputation for honesty, fairness, respect, responsibility, integrity, trust, and sound business judgment in all of our operations.

Standards of Conduct

All **Team Members**, leadership, and the Owner/Operator are expected to:

- Conduct themselves in a professional and ethical manner at all times.
- Avoid behavior that could harm the Company's reputation, brand, or business relationships.
- Act in good faith, with honesty and fairness, in all dealings on behalf of the Company.
- Avoid conflicts of interest or situations that could reasonably appear to present a conflict.
- Comply with all federal, state, and local laws and regulations, as well as all applicable Chick-fil-A, Inc. standards and requirements.

Confidentiality

Team Members may have access to confidential and proprietary information, including but not limited to:

- Financial and sales records/reports.
- Marketing and business strategies/plans.
- Guest information, customer lists, or partner/vendor data.
- Trade secrets, trademarks, patents, or other intellectual property.
- Personnel information of other Team Members.

Such information must not be disclosed or shared outside the Company, or with other Team Members who do not have a business need to know. Unauthorized disclosure may result in disciplinary action, including termination, and could also subject the violator to civil or criminal liability.

Representation of the Company

- No Team Member may represent themselves as speaking on behalf of **Fivetwo LLC dba Chick-fil-A West Acres** unless specifically authorized by the Owner/Operator.
- Public statements, social media posts, or comments to outside parties must not misrepresent the Company or Chick-fil-A brand.
- Use of the Company's name, logo, or brand assets without authorization is prohibited.

Duty of Loyalty

As employees of the Company, Team Members owe a duty of loyalty to the Company. This includes refraining from engaging in outside activities, employment, or business dealings that compete with or conflict with the interests of the Company without prior written approval from the Owner/Operator.

Compliance and Reporting

- Any violation of this Code of Ethics may result in corrective action, up to and including termination of employment.
- The severity of discipline may take into account whether the Team Member voluntarily disclosed the violation and cooperated in any investigation.
- Team Members are required to immediately report suspected violations of this Code, Company policy, or applicable law to the Owner/Operator or designated leadership. Retaliation for good-faith reporting of violations is strictly prohibited.

2.4 Mission Statement

Corporate Purpose

At Fivetwo LLC dba Chick-fil-A West Acres, we embrace Chick-fil-A's corporate purpose as our own: To glorify God by being a faithful steward of all that is entrusted to us and to have a positive influence on all who come in contact with Chick-fil-A. This purpose serves as the foundation for all that we do. It guides how we serve Guests, how we lead our Team Members, and how we impact our community.

Chick-fil-A West Acres Vision

To serve, make an impact, one by one

2.5 Our Organization

Organizational Structure

At **Fivetwo LLC dba Chick-fil-A West Acres**, our organizational structure is designed to provide clear leadership, accountability, and pathways for growth. Each Team Member plays an important role in helping us serve our Guests with excellence while supporting one another.

- **Operator** – The Owner/Operator is responsible for the overall leadership, vision, and direction of Chick-fil-A West Acres. The Operator oversees all business operations, ensures alignment with Chick-fil-A standards, and invests in the development of the leadership team and Team Members.
- **Directors** – Reporting directly to the Operator, Directors oversee specific areas of the business and ensure operational excellence. Director positions may include Talent/Financial Director, Front of House Director, Marketing/Community Director, Back of House Director, and Catering/Delivery Director. Directors are responsible for strategic leadership, training, and results within their areas.
- **Assistant Directors** – Assistant Directors support the Directors in managing daily operations. Their role is to bridge the gap between Directors and Shift Leaders, ensuring that systems are implemented effectively and that Team Members are properly supported. They are usually in charge of one designated component of their respective area (BOH/FOH)
- **Shift Leaders** – Shift Leaders are responsible for leading the restaurant during their assigned shifts. They ensure that operations run smoothly, Team Members are supported, and Guests receive excellent service. Shift Leaders are key to maintaining culture, productivity, and communication between Team Leaders and Directors.
- **Team Leaders** – Team Leaders oversee smaller groups of Team Members in their work areas (Front of House or Back of House). They help manage daily responsibilities, coach performance, and model servant leadership.
- **Certified Trainers** – Certified Trainers are experienced Team Members who have demonstrated leadership, skill, and the ability to train others. They play a critical role in onboarding new hires and reinforcing Chick-fil-A standards.
- **Team Members** – Team Members are the foundation of Chick-fil-A West Acres. They are responsible for carrying out daily tasks, delivering exceptional Guest experiences, and upholding our values of integrity, excellence, empathy, purpose, and resiliency.
- **New Hires** – All new Team Members begin as new hires and will receive thorough training and support. With time, dedication, and consistent performance, new hires have the opportunity to grow into Certified Trainers, Team Leaders, and beyond.

2.6 Revisions to Handbook

This handbook is our attempt to keep you informed of the terms and conditions of your employment, including Fivetwo LLC dba Chick-fil-A West Acres policies and procedures. The handbook is not a contract. The Company reserves the right to revise, add, or delete from this

handbook as we determine to be in our best interest, except the policy concerning at-will employment. When changes are made to the policies and guidelines in this handbook, we will communicate them promptly, either in a written supplement to the handbook or by posting them on company bulletin boards or websites.

This Chick-fil-A Restaurant Team Member Policy Manual is to be used in the day-to-day administration of our company personnel program. The manual is not intended for public display and is designed solely for internal use by Chick-fil-A West Acres Team Members and management.

Our Team Members are employed by Fivetwo LLC and are not employees of Chick-fil-A, Inc. For ease of reference, however, Fivetwo LLC will be referred to as Chick-fil-A West Acres, Chick-fil-A, or CFA throughout this manual.

These written policies are intended to:

- Increase your understanding of Company expectations and standards.
- Eliminate the need for personal decision-making on matters of Company-wide policy.
- Help assure fairness and uniformity throughout our organization.

It is the responsibility of each and every leader and member of management to administer these policies in a consistent and impartial manner.

Procedures and practices in the field of Human Resources are subject to modification and further development in light of experience. Team Members are encouraged to assist in keeping our personnel program up to date by notifying the Operator whenever it appears that improvements can be made in the administration of our personnel policies.

The policies set forth in this manual apply to all Team Members located at Chick-fil-A West Acres. No officer, leader, or representative of Chick-fil-A West Acres is authorized to make any agreement with you that is inconsistent with the express language contained in this manual. Where a policy, practice, or benefit described in this manual is contrary to a specific law of the state of North Dakota or any other jurisdiction in which we operate, that law shall determine the applicable policy. With special authorization, practices and policies described in this manual may be modified to accommodate local situations. All such modifications must have the written approval of the Operator.

This is the property of Fivetwo LLC dba Chick-fil-A West Acres. Unauthorized duplication or distribution is strictly prohibited.

3.0 Hiring and Orientation Policies

3.1 Accommodations for Pregnancy, Childbirth, and Related Medical Conditions

Fivetwo LLC dba Chick-fil-A West Acres will grant family and medical leaves of absence to eligible Team Members in accordance with the requirements of the federal Family and Medical Leave Act (FMLA) and any applicable state law concerning this subject. Where state law provides for family or medical leave, FMLA and state law leave will, to the extent allowed by law, run concurrently. No greater or lesser leave benefits will be granted than those set forth in the applicable state or federal laws. In any case, eligible Team Members will be provided the most generous benefits available under either federal or state law, where state law applies.

A Team Member should contact his or her Operator or Leadership person as soon as they become aware of the need for family and medical leave. This policy sets forth a summary of our policy in this regard, and our Team Members' rights under FMLA.

Employee Eligibility

To be eligible for family and medical leave benefits, a Team Member must:

1. Have worked for Chick-fil-A West Acres for a total of at least 12 months; and
2. Have worked at least 1,250 hours over the previous 12 months.

Leave Available

Eligible Team Members may receive up to a total of 12 workweeks of unpaid family or medical leave during a 12-month period. The 12-month period begins on the date of the first absence qualifying for FMLA leave and rolls forward from that date.

Qualifying Reasons for Leave

Leave may be taken for the following reasons:

1. To care for a newborn child (birth through 12 months of age).
2. For the birth or placement of a child for adoption or foster care.
3. To care for an immediate family member (spouse, child, registered domestic partner, or parent) with a serious health condition.
4. When the Team Member is unable to work because of their own serious health condition.

A serious health condition includes:

- Any injury, illness, or impairment involving inpatient care in a hospital, hospice, or residential medical care facility.
- Continuing treatment by a health care provider which includes a period of incapacity for three or more consecutive calendar days and either (a) two or more visits to the health care provider, or (b) at least one visit followed by a regimen of continuing treatment under the supervision of the provider.
- Chronic conditions requiring ongoing treatment.

Under certain circumstances, Team Members may take family or medical leave intermittently (in blocks of time) or on a reduced work schedule. Intermittent leave, if approved, may be taken in hourly increments and will count toward the Team Member's 12-week entitlement.

Notice and Certification

A Team Member needing family or medical leave may be required to provide:

- 30 days' advance notice when the need is foreseeable (e.g., childbirth, elective surgery). If 30 days' notice is not possible, notice must be given as soon as practical. Failure to give timely notice may affect the ability to take leave as requested.
- Medical certification from a health care provider (both prior to the leave and before reinstatement).
- Periodic re-certification and status reports during the leave.

When leave is needed for planned medical treatment, Team Members should make reasonable efforts to schedule treatment so as not to unduly disrupt restaurant operations.

Compensation During Leave

Family and medical leave is unpaid. Depending on circumstances, a Team Member may be eligible for short-term disability, long-term disability, or workers' compensation insurance coverage while on FMLA leave.

A Team Member's use of FMLA leave will not result in the loss of any employment benefit earned prior to taking the leave.

Job Reinstatement Upon Return From Leave

Under most circumstances, upon return from FMLA leave, a Team Member will be reinstated to their previous position or to an equivalent position with equivalent pay, benefits, and other employment terms and conditions. However, a Team Member has no greater right to reinstatement than if they had been continuously employed during the leave.

A Team Member returning from leave for their own serious health condition must provide certification from their health care provider confirming they are able to resume work. If a Team Member has exhausted FMLA leave but is unable to perform the essential functions of their job because of a disability as defined by law, Chick-fil-A West Acres will attempt to provide a reasonable accommodation if possible, consistent with the Americans with Disabilities Act (ADA).

3.2 Conflicts of Interest

Fivetwo LLC dba Chick-fil-A West Acres is concerned with conflicts of interest that may create job-related concerns, particularly in the areas of confidentiality, customer relations, safety, security, and morale.

A conflict of interest occurs when a Team Member's personal interests interfere, or appear to interfere, with the interests of Chick-fil-A West Acres. Examples include situations involving competitors, suppliers, distributors, contractors, or other outside business relationships.

If you believe you may have an actual or potential conflict of interest, you are required to disclose it promptly to your Manager or

Supervisor. The Company will review the circumstances and determine what steps, if any, are necessary to reduce or eliminate the conflict.

Team Members are expected to avoid conflicts of interest whenever possible and to act in the best interests of Chick-fil-A West Acres at all times.

3.3 Disability Accommodation

Americans with Disabilities Act (ADA) and Related Accommodations

Fivetwo LLC dba Chick-fil-A West Acres complies with the **Americans with Disabilities Act (ADA)**, the **Pregnancy Discrimination Act (PDA)**, and all applicable state and local fair employment practices laws. We are committed to providing equal employment opportunities to qualified individuals with disabilities, including disabilities related to pregnancy, childbirth, and related conditions.

Consistent with this commitment, Chick-fil-A West Acres will provide reasonable accommodation to otherwise qualified individuals where appropriate, to allow the individual to perform the essential functions of the job, unless doing so would create an undue hardship on the business.

Requesting an Accommodation

If you require an accommodation because of a disability, it is your responsibility to notify your Manager or Supervisor. When making a request, you may be asked to provide:

- The reason you need an accommodation.
- A description of the proposed accommodation.
- How the accommodation will help you perform the essential functions of your job.

Interactive Process and Medical Information

After receiving your request, Chick-fil-A West Acres will engage in an interactive dialogue with you to determine the limitations of your disability and explore potential reasonable accommodations. Where appropriate, we may need your permission to obtain additional information from your medical provider. All medical information received in connection with a request for accommodation will be treated as confidential and shared only on a need-to-know basis.

Accommodation Options

You are encouraged to suggest accommodations you believe would allow you to perform your job effectively. However, Chick-fil-A West Acres is not obligated to provide the specific accommodation you request and may instead offer an alternative accommodation, provided it is reasonable and effective.

Accommodations will not be provided if they create an **undue hardship**, taking into account the nature and cost of the accommodation, the overall financial resources of the facility, and the impact on operations, including safety and efficiency.

Interaction with Other Leave Laws

If leave is provided as a reasonable accommodation, such leave may run concurrently with leave under the **Family and Medical Leave Act (FMLA)** and/or other applicable leave provided under state or federal law.

Non-Discrimination and Non-Retaliation

Chick-fil-A West Acres strictly prohibits discrimination or retaliation against Team Members who request or utilize a reasonable accommodation. Any concerns about retaliation or discrimination should be reported immediately to the Operator.

3.4 Employment Authorization Verification

New hires at Fivetwo LLC dba Chick-fil-A West Acres are required to complete Section 1 of federal Form I-9 on their first day of paid employment. Team Members must also present acceptable documents, as authorized by the U.S. Citizenship and Immigration Services (USCIS), proving both identity and employment authorization no later than the third business day following the start of employment with Chick-fil-A West Acres.

If you are currently employed and have not yet complied with this requirement, or if your employment authorization status changes, you

must immediately inform your Manager or Supervisor.

If you are authorized to work in the United States for a limited period of time, you will be required to submit proof of renewed employment eligibility prior to the expiration date of your current authorization in order to remain employed with Chick-fil-A West Acres.

3.5 Employment of Relatives and Friends

Fivetwo LLC dba Chick-fil-A West Acres will not employ relatives or friends in circumstances where actual or potential conflicts may arise that could compromise supervision, safety, confidentiality, security, or morale.

It is the responsibility of each Team Member to promptly inform Chick-fil-A West Acres of any such potential conflict so that the Company can review the situation and determine the most appropriate response.

3.6 Job Descriptions

Fivetwo LLC dba Chick-fil-A West Acres maintains job descriptions for each position within the restaurant. If you do not have a current copy of your job description, you should request one from your Manager or Supervisor.

Job descriptions prepared by Chick-fil-A West Acres are intended to serve as general outlines of the duties and responsibilities of each position. They are not exhaustive and do not limit the Company's right to assign or reassign duties as needed. Due to business needs, you may be required to perform job functions outside of your written job description.

The Company reserves the right to revise, add to, or delete from any job description at any time, with or without advance notice to Team Members, and at its sole discretion. Revisions may be made to reflect changes in business operations, organizational needs, or applicable laws and regulations.

If you have questions about your job description or the scope of your responsibilities, you should speak directly with your Manager or Supervisor.

3.7 New Hires and Introductory Periods

The first 90 days of your employment is considered an introductory period. During this time, you will become familiar with Fivetwo LLC dba Chick-fil-A West Acres and your job responsibilities, and the Company will have the opportunity to evaluate your performance, attendance, and overall fit within the team. Adjustments to your job description or responsibilities may be made as needed during this period.

Completion of the introductory period does not imply or guarantee continued employment. Nothing that occurs during or after this period should be interpreted as creating an employment contract or altering the at-will employment relationship, which allows either you or the Company to terminate employment at any time, with or without cause or notice, consistent with applicable law.

3.8 Posting of Openings

Fivetwo LLC dba Chick-fil-A West Acres values the growth and development of its Team Members and may, at its sole discretion, promote qualified Team Members from within the organization. While the Company desires to provide advancement opportunities, all decisions regarding promotions, transfers, and job postings will be made in the best interest of the business and are not guaranteed.

New job openings may be posted internally on the Team Member bulletin board or through other Company communication channels. However, the Company reserves the right, at the sole discretion of the Owner/Operator, to fill positions by any means deemed appropriate, including external recruitment, without prior internal posting.

Nothing in this policy creates a promise or contract of promotion, transfer, or continued employment. All employment with Chick-fil-A West Acres remains strictly at-will, meaning either the Team Member or the Company may end the employment relationship at any time, with or without cause or notice, consistent with applicable law.

3.9 Religious Accommodation

Fivetwo LLC dba Chick-fil-A West Acres recognizes the diversity of religious beliefs and is committed to providing equal employment opportunities to all **Team Members**, regardless of their religious beliefs, practices, or lack thereof. Consistent with this commitment, Chick-fil-A West Acres complies with **Title VII of the Civil Rights Act of 1964** and all applicable state and local laws that prohibit employment discrimination on the basis of religion.

The Company will reasonably accommodate the sincerely held religious beliefs or practices of Team Members if such accommodations

resolve a conflict between the individual's belief or practice and a work requirement, unless doing so would create an **undue hardship** on the business.

Requesting a Religious Accommodation

If you require an accommodation because of your religious beliefs or practices, you must make the request with your Manager or Supervisor. When making the request, you may be asked to provide:

- A description of the proposed accommodation.
- The reason you need the accommodation.
- How the accommodation will help resolve the conflict between your religious beliefs or practices and your work requirements.

Interactive Process

After receiving your request, Chick-fil-A West Acres will engage in an interactive process with you to explore potential reasonable accommodations. You are encouraged to suggest accommodations you believe would be effective; however, the Company is not obligated to grant the specific accommodation requested and may provide an alternative accommodation, as long as it resolves the conflict without imposing an undue hardship on the business.

Non-Discrimination and Non-Retaliation

Chick-fil-A West Acres strictly prohibits discrimination or retaliation against Team Members who, in good faith, request a religious accommodation under this policy.

3.10 Training Program

In most cases, and for most areas of the restaurant, training for Team Members is conducted on an individual basis by a Manager or Supervisor. Even if you have prior experience performing similar job functions, it is necessary for you to learn the specific procedures, standards, and responsibilities associated with your position at Chick-fil-A West Acres.

If at any point you feel you require additional training to perform your job effectively, you are encouraged to consult your Manager or Supervisor so that appropriate guidance or resources may be provided.

4.0 Wage and Hour Policies

4.1 Attendance

Fivetwo LLC dba Chick-fil-A West Acres has established shifts and working hours for all Team Members. Failure to report to work on time as scheduled disrupts restaurant operations, burdens other Team Members, and negatively impacts our Guests' experience. As a condition of employment, Chick-fil-A West Acres expects every Team Member to be reliable in attendance and punctuality. This means reporting to work on time, prepared, and ready to begin work at your scheduled start time each day.

General Requirements

- Team Members are responsible for maintaining a satisfactory attendance and punctuality record.
- If you will be tardy or unable to report for a scheduled shift, you must notify the Manager on Duty at least **two hours before your scheduled start time** (or as soon as practicable in the case of an emergency). You must also provide a valid reason, the expected duration of your absence, and your anticipated return.
- If you need to leave work early, you must first obtain permission from your Manager or Supervisor.
- Failure to notify leadership of any anticipated or unanticipated absence, late arrival, or early departure may result in disciplinary action, up to and including termination, except where otherwise required by law.

Excessive tardiness and absences reflect negatively on performance, disrupt operations, and may result in disciplinary action, up to and including termination of employment. If you fail to report to work without any notification to the Manager on Duty, Chick-fil-A West Acres will consider this job abandonment and a voluntary resignation.

Team Members are expected to be ready to work at their scheduled time. You are encouraged to arrive at least five minutes early to store personal belongings (jackets, bags, etc.). You may not clock in for your shift until all personal items have been stored properly.

Work Schedules

- Team Members are scheduled based on business needs, performance, attendance, and availability. All scheduling decisions are made at the sole discretion of Chick-fil-A West Acres.
- If your availability changes, you must notify a member of leadership immediately. Changes in availability may affect continued employment.

Schedule Posting

Weekly schedules will be distributed by Saturday for the upcoming week. It is the responsibility of each Team Member to review the schedule promptly. Once posted, any changes must be pre-approved and initialed by a Manager or Supervisor.

Requesting Time Off

Requests for time off must be submitted at least **two weeks in advance**. While every effort will be made to honor requests, business needs may not always allow accommodation.

Schedule Changes

If an unexpected event arises, you are responsible for finding coverage for your assigned shift. All shift swaps must be approved in advance by a Manager or Supervisor. Last-minute changes for future dates must be requested through the scheduling system or Hot schedules platform at least two weeks in advance.

Failure to find coverage for a shift, except in cases of verified sickness or emergency, may result in disciplinary action. Leadership may, at its discretion, waive your responsibility to work if business volume allows, but this should not be expected.

Absence Policy

You are expected to work each day you are scheduled. Absences impair restaurant efficiency, inconvenience fellow Team Members, and negatively affect our Guests. Therefore, all absences will be tracked, categorized, and addressed according to this policy.

Excused Absences

- Excused absences are those approved in advance or required by law (e.g., protected leave).
- If you are sick with fever, flu, uncontrolled cough, vomiting, or any contagious symptoms, you should not report to work. You must call the store to notify leadership of your condition.
- A doctor's note may excuse you from disciplinary action and may be required before returning to work, especially if you are absent for multiple shifts.

Unexcused Absences

- Unexcused absences are any absences without prior approval or proper communication.
- Unexcused absences may result in disciplinary action, including:
 - **Warning** – A verbal or written warning about future attendance expectations.
 - **Suspension** – Temporary removal from scheduled work.
 - **Termination** – Permanent separation from employment.

Chick-fil-A West Acres reserves the right to terminate employment at any time for job abandonment or excessive unexcused absences, consistent with our **at-will employment** policy.

Emergency Absences

Emergencies include death in the immediate family, serious accident, sudden illness, or another severe circumstance that prevents attendance. In such cases, you must notify the Operator or Leadership as soon as possible and provide updates regarding your condition and anticipated return. Documentation may be required before resuming work.

Extended Leave

Extended absences must be approved in advance by Leadership. Requests will be considered based on attendance history, business needs, and staffing levels. The more notice provided, the greater the likelihood of approval.

In emergencies where advance notice is not possible, you must contact leadership as soon as possible and remain in communication regarding your condition and return date. Documentation or certification may be required before resuming work.

Medical Documentation

Chick-fil-A West Acres reserves the right to require a doctor's note or medical certification in the following circumstances:

1. Absence of one or more consecutive scheduled shifts.
2. Illness that may be transmitted to other Team Members or Guests through casual workplace contact.
3. Contagious conditions that could pose a risk in food service.
4. Any hospitalization.

4.2 Business Expenses

The purpose of this policy is to define approved non-travel business expenses and the authority for incurring and approving such expenses at **Fivetwo LLC dba Chick-fil-A West Acres**.

Approved business expenses are those that are **reasonable, necessary, directly related to legitimate business purposes, and pre-approved in writing at the sole discretion of the Owner/Operator**. Any expense not pre-approved in writing will be the sole responsibility of the Team Member and will not be reimbursed under any circumstances.

Business Meetings (Employer-Sponsored Events and Meetings)

Chick-fil-A West Acres may cover expenses necessary to achieve a valid business purpose when meetings are held with customers, vendors, or other Team Members. All such expenses must be pre-approved in writing by the Operator. The **most senior Chick-fil-A West Acres leader present** is responsible for paying for and reporting all pre-approved expenses.

The Company may, at its discretion, set up a master account for restaurant-wide or large group events. For smaller meetings or individual meals, Team Members must pay individually and submit for reimbursement **only if prior written approval was granted**.

Entertainment

Entertainment expenses will only be covered if they are **clearly business-related, promotional in nature, and pre-approved in writing by the Operator**. Any entertainment expenses not pre-approved in writing will not be reimbursed. The **most senior individual present** is responsible for paying for and reporting approved expenses.

Technical and Training Seminars

Expenses associated with classes, conferences, or seminars that enhance job-related skills will only be reimbursed if they are **pre-approved in writing by the Operator** before any costs are incurred.

Gifts

Business gifts may be presented only under **exceptional circumstances** and with **prior written approval from the Operator**. Chick-fil-A West Acres will not reimburse costs exceeding **\$25** for any business gift. Gifts purchased without prior written approval will not be reimbursed.

Other Expenses

Reasonable business-related postage and telephone expenses may be covered if they are **pre-approved in writing by the Operator**.

Reporting

All approved expenses must be submitted on the Company's expense report form with full documentation, including:

- The date of the expense.
- The vendor.

- The business purpose.
- A list of attendees/participants (if applicable).
- An original or copy of the receipt.

Only expenses pre-approved in writing and properly documented will be reimbursed. Any expense incurred without prior written approval will be treated as a personal expense of the Team Member.

4.3 Direct Deposit

Fivetwo LLC dba Chick-fil-A West Acres encourages all **Team Members** to enroll in direct deposit for payroll. Direct deposit is the most secure, efficient, and reliable method of payment.

If you would like to enroll in direct deposit, you may request an application form from your Manager or Supervisor. After submitting a completed application, it typically takes up to **30 calendar days** for the bank to process and begin direct deposit of your payroll.

If you are enrolled in direct deposit, you will receive a written pay statement detailing your earnings, deductions, and net pay on scheduled paydays in lieu of a paper paycheck.

Note: Until direct deposit is fully activated, you will continue to receive paper checks. It is the responsibility of the Team Member to provide accurate banking information and to promptly notify management of any changes to banking accounts to avoid delays in payroll.

4.4 Employment Classifications

In accordance with federal, state, and local laws, **Fivetwo LLC dba Chick-fil-A West Acres** classifies all Team Members as either **exempt** or **nonexempt** for purposes of wage and hour requirements:

- **Exempt Employees** – Exempt employees are generally paid a fixed salary and are not entitled to overtime pay.
- **Nonexempt Employees** – Nonexempt employees are entitled to at least minimum wage and applicable overtime pay in compliance with law.

In addition, each Team Member is assigned to one of the following categories:

- **Regular Full-Time Employees** – Normally scheduled to work at least **30 hours per workweek**, excluding approved time off. Full-time employees may be eligible for certain Company benefits, subject to the terms of each benefit program.
- **Regular Part-Time Employees** – Normally scheduled to work **less than 30 hours per workweek**. Part-time employees are generally not eligible for most Company benefits, unless required by law.
- **Temporary or Seasonal Employees** – Hired for a defined period, project, or during peak business seasons. Temporary or seasonal employees may work full- or part-time schedules but are not eligible for most Company benefits.

You will be informed of your classification, status, and responsibilities at the time of hire, and if they change during your employment. If you have questions about your classification or eligibility for benefits, contact your Manager or Supervisor.

Nothing in these classifications alters the **at-will employment relationship** between Chick-fil-A West Acres and its Team Members.

4.5 Introduction to Wage and Hour Policies

At **Fivetwo LLC dba Chick-fil-A West Acres**, compensation is determined based on a variety of factors, including industry pay scale surveys, individual performance and effort, business profitability, and overall market conditions. Pay rates may be reviewed and adjusted at the sole discretion of the Company, consistent with applicable federal, state, and local wage and hour laws.

If you have questions regarding your compensation—including matters such as paid time off, overtime, benefits, or paycheck deductions—you should speak directly with your Manager or Supervisor.

Nothing in this policy guarantees a particular rate of pay or compensation adjustment, and all pay decisions are made at the discretion of Chick-fil-A West Acres, subject to legal requirements.

4.6 Paycheck Deductions

Payroll Deductions

Fivetwo LLC dba Chick-fil-A West Acres is required by law to make certain deductions from your pay each pay period. These deductions include, but are not limited to:

- Federal income tax.
- Social Security and Medicare (FICA) taxes.
- State and local income taxes (where applicable).
- State unemployment and disability insurance taxes (where applicable).
- Court-ordered wage garnishments or child support obligations.

The amount of tax deductions will depend on your earnings and the information you provide on your federal Form W-4 and any applicable state withholding forms.

For exempt employees, permissible deductions may also include, but are not limited to:

- Full-day absences for reasons other than sickness or disability.
- Certain unpaid disciplinary suspensions permitted by law.

You may also authorize certain voluntary deductions (such as retirement contributions, health insurance premiums, or other benefits) where permitted under state and federal law.

All deductions will be reflected in your wage statement. If you have questions regarding any deductions, contact your Manager or Supervisor immediately.

Compliance and Corrections

Chick-fil-A West Acres will not make deductions from your pay that are prohibited by federal, state, or local law. You are responsible for reviewing your paycheck for accuracy each pay period and reporting any discrepancies promptly.

If an improper or inadvertent deduction is identified, the Company will reimburse you in full and issue a correction within 30 days of confirmation of the error.

Chick-fil-A West Acres strictly prohibits retaliation against any Team Member who reports a potential payroll error or improper deduction in good faith.

4.7 Recording Time

Fivetwo LLC dba Chick-fil-A West Acres is required by federal, state, and local laws to maintain accurate records of hours worked by nonexempt Team Members. To ensure that all Team Members are paid correctly for the hours they work, nonexempt Team Members must accurately record all working time using the Company's designated timekeeping system.

Your Manager or Supervisor will provide you with specific instructions for using the system.

Recording Time

Team Members must record time according to the following rules:

- At the start of your scheduled shift (immediately before beginning work).
- At the start and end of any unpaid meal period.
- At the end of your shift, immediately after finishing work.
- At the start and end of any other time away from work.
- Any other compensable time required by applicable law.

Team Members should clock in no earlier than five minutes before their scheduled shift and clock out no later than five minutes after their scheduled shift ends.

All time entries must be accurate and reflect actual hours worked.

Responsibilities

- Time records must be completed daily and submitted according to Company procedures.
- Any pay discrepancies, missed punches, unrecorded work hours, or involuntarily missed meal or break periods must be reported immediately to your Manager or Supervisor.
- It is the responsibility of each Team Member to ensure their time is recorded correctly; failure to do so may result in delayed or incorrect pay.

Prohibited Conduct

- Falsifying time entries is strictly prohibited. This includes working "off the clock" (performing work without recording time) or altering another Team Member's records.
- Team Members found to have falsified time entries, worked off the clock, or assisted others in doing so will be subject to disciplinary action, up to and including termination.
- Any Team Member who is instructed by a supervisor, manager, or other employee to falsify time entries or work off the clock must immediately report this to the Operator or designated leadership.

4.8 Use of Employer Credit Cards

All **Team Members** entrusted with a credit card issued by **Fivetwo LLC dba Chick-fil-A West Acres** must follow strict guidelines for the protection and proper use of that card.

Authorization Requirement

- **Every purchase, regardless of amount, must receive prior authorization from the Operator or a designated Manager/Supervisor.**
- Credit cards are to be used exclusively for approved business-related expenses. **Personal use of a Company credit card is strictly prohibited.**

Receipts and Documentation

- A receipt must be obtained for **every purchase, regardless of amount.**
- Receipts must clearly identify the date, vendor, business purpose, and amount.
- All receipts must be submitted **weekly** to your Manager or Supervisor.

Unauthorized Purchases

- Any unauthorized purchase made with a Company-issued credit card will be the **personal responsibility of the cardholder.**
- The Team Member must reimburse Chick-fil-A West Acres within **10 days** of notification.
- Failure to reimburse may result in payroll deductions (where permitted by law) and/or disciplinary action, up to and including termination.

Lost or Stolen Cards

Any lost or stolen credit card must be reported **immediately** to your Manager or Supervisor.

Accountability

Improper, unauthorized, or undocumented use of a Company-issued credit card will result in disciplinary action, up to and including termination of employment, and may also result in legal action. The Operator reserves the right to revoke credit card privileges at any time.

5.0 Performance, Discipline, Layoff, and Termination

5.1 Criminal Activity/Arrests

Fivetwo LLC dba Chick-fil-A West Acres will report all criminal activity to the proper authorities in accordance with applicable law. Any involvement in criminal activity while employed by the Company—whether on or off Company property—may result in disciplinary action, up to and including suspension or termination of employment.

Team Members are expected to be present, on time, and ready to work at their scheduled start time. Failure to report to work as scheduled, without proper notification or authorization, may result in disciplinary action, up to and including termination, for violation of Company attendance policies or job abandonment.

5.2 Disciplinary Process

Violation of Fivetwo LLC dba Chick-fil-A West Acres policies or procedures may result in disciplinary action, including but not limited to verbal or written warnings, demotion, transfer, suspension or leave without pay, or termination of employment.

While the Company may, in appropriate circumstances, use a progressive discipline system (such as verbal warning, written warning(s), and, if necessary, further corrective action), Chick-fil-A West Acres is not required to use progressive discipline and may discipline or terminate a Team Member at any time, with or without prior warning, consistent with applicable law.

Any attempt at progressive discipline does not change the fact that all Team Members are employed on an "at-will" basis, meaning that either the Team Member or the Company may end the employment relationship at any time, with or without cause or notice, except as prohibited by law.

Management will make every reasonable effort to provide Team Members an opportunity to respond to disciplinary action. However, the Company is not obligated to follow any particular disciplinary or grievance procedure and retains full discretion to determine the appropriate level of corrective action based on the circumstances.

For additional information on disciplinary measures tied to attendance, performance, and conduct, please refer to the Accountability section of this handbook.

5.3 Employment Verification

It is the policy of Fivetwo LLC dba Chick-fil-A West Acres to verify only limited information regarding current or former Team Members. The Company will confirm dates of employment, job title, and compensation (where permitted under applicable law).

The Company will provide such information only with the Team Member's prior written authorization. Without this authorization, no additional information will be released.

All requests for employment verification must be forwarded to the Operator or designated Manager/Supervisor for response. No other Team Member is authorized to provide employment verification on behalf of Chick-fil-A West Acres.

5.4 Exit Interview

When you leave Fivetwo LLC dba Chick-fil-A West Acres, you may be asked to participate in an exit interview. The purpose of the exit interview is to provide management with greater insight into your decision to leave, identify any trends requiring attention, and highlight opportunities for improvement. Information from exit interviews also helps the Company strengthen recruitment and retention strategies.

While participation is voluntary, your cooperation in the exit interview process is appreciated and valued.

5.5 Open Door/Conflict Resolution Process

Fivetwo LLC dba Chick-fil-A West Acres is committed to providing a comfortable, productive, legal, and ethical work environment. To support this commitment, Team Members are encouraged to bring any problems, concerns, or grievances regarding the workplace to the attention of management so they can be addressed promptly and appropriately.

Step 1: Speak with Your Manager or Supervisor

If you believe there has been inappropriate conduct or activity involving the Company, management, Team Members, vendors, customers, or any other person or entity related to Chick-fil-A West Acres, you should first bring your concern to your Manager or Supervisor. Concerns should be raised at a time and place that allows for a proper discussion. In many cases, issues can be resolved informally through direct dialogue with your immediate supervisor.

Step 2: Elevate the Concern

If you have already raised the matter with your Manager or Supervisor and believe the response was insufficient, or if you believe your Manager or Supervisor is the source of the concern, you may escalate the issue directly to the Operator or designated senior leadership.

When escalating, you should:

- Clearly describe the problem.
- Identify those involved.
- Explain any steps you have already taken to resolve the issue.
- Provide any suggested solutions you may have.

Company Discretion

Chick-fil-A West Acres will make every reasonable effort to address Team Member concerns fairly and promptly. However, nothing in this procedure obligates the Company to resolve an issue in a particular way, nor does it alter the at-will employment relationship between the Team Member and the Company.

5.6 Outside Employment

Outside employment that creates a conflict of interest or affects the quality or value of your work performance or availability at Chick-fil-A West Acres is prohibited. Chick-fil-A West Acres recognizes that you may seek additional employment during off hours; however, in all cases, such employment must not interfere with your attendance, job performance, productivity, work hours, or scheduling, nor may it otherwise adversely affect your ability to effectively perform your duties or create a conflict of interest.

Employees are required to notify their Supervisor or Manager of any outside employment. Chick-fil-A West Acres will review the information to ensure no conflict of interest exists. Any outside employment that conflicts with your duties and obligations must be disclosed in advance and may be denied if it interferes with business operations.

Failure to adhere to this policy may result in disciplinary action, up to and including termination.

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5.7 Pay Raises

Depending on the financial health of Chick-fil-A West Acres and other business factors, efforts will be made to provide pay raises that are consistent with the restaurant's profitability, individual job performance, and the consumer price index.

Chick-fil-A West Acres may also grant individual pay raises based on merit or in recognition of a change in job position.

5.8 Performance Reviews

Chick-fil-A West Acres will make efforts to periodically review your work performance. The performance review is a tool used to evaluate employee performance over the review period by assessing:

- Your performance of assigned job duties and responsibilities.
- Your achievement or lack of achievement of specific targets and goals.
- Other aspects of your performance (e.g., communication skills, professionalism, ability to collaborate, reliability, willingness to take initiative, etc.).

Performance reviews will take place **at a quarterly basis**, or as business needs dictate.

The performance review process is intended to increase the quality and value of your work performance. The review process may be used:

- As a basis for employment decisions, such as promotions and demotions.
- To improve the performance of underperforming Team Members.
- To document employee growth at Chick-fil-A West Acres.

A positive performance review does not guarantee a pay raise or continued employment.

5.9 Promotions

To match you with the job for which you are best suited and to meet the business needs of Chick-fil-A West Acres, you may be transferred from your current position. It is our policy to promote from within when the most qualified candidate is available. Promotions are made on an equal opportunity basis according to Team Members possessing the skills, education, experience, and other qualifications required for the role.

Promotions are never guaranteed and are made at the sole discretion of the Operator, based on business needs and the qualifications of the candidate.

5.10 Resignation Policy

Chick-fil-A West Acres hopes that your employment with us will be a mutually rewarding experience; however, we recognize that circumstances may arise where you choose to resign. Our intent is to handle any resignation in a professional manner with minimal disruption to the workplace.

Notice

We request that you provide a minimum of **two weeks' notice** if you decide to resign. If you are a Manager or Supervisor, you are requested to provide a minimum of **four weeks' notice**. A written resignation letter must be submitted to your Supervisor or Manager.

If less notice is given, Chick-fil-A West Acres may determine that you are ineligible for rehire, depending on the circumstances. The restaurant reserves the right to provide pay in lieu of notice if job or business needs warrant.

Final Pay

Final pay will be provided in accordance with North Dakota law and other sections of this handbook. Please notify Chick-fil-A West Acres if your address changes during the calendar year in which your resignation occurs to ensure tax documents are sent to the correct address.

Return of Property

All Chick-fil-A West Acres property must be returned at the time of separation. This includes, but is not limited to:

- Uniforms
- Keys
- Name badges/ID cards
- Credit cards
- Laptops, phones, or other company-issued equipment

Failure to return company property may result in deductions from your final paycheck **only as allowed under North Dakota law and with your prior written authorization**. In serious cases, Chick-fil-A West Acres may pursue legal action for unreturned property.

5.11 Standards of Conduct

Chick-fil-A West Acres is committed to creating a work environment that promotes **job satisfaction, respect, responsibility, integrity, and value** for all our **Team Members**, guests, and partners. We all share in the responsibility of maintaining and improving the quality of our workplace. By choosing to work here, you agree to uphold these values and follow all restaurant policies and procedures.

While it is impossible to list every action that could be considered misconduct, the following examples represent **common-sense expectations**. Violation of these standards may result in disciplinary action, up to and including immediate termination of employment. This policy does not limit the restaurant's right to discipline or discharge Team Members for any reason permitted by law.

Examples of Inappropriate Conduct Include:

- Violation of any policy, procedure, or standard outlined in this handbook.
- Possessing, using, distributing, selling, or negotiating the sale of illegal drugs or other controlled substances.

- Being under the influence of alcohol during working hours, on Chick-fil-A West Acres property (including in company vehicles), or while representing the restaurant in any capacity.
- Inaccurately reporting hours worked by yourself or another Team Member.
- Providing false, incomplete, or misleading information in any employment-related document or communication, including applications, personnel files, or expense records.
- Taking, damaging, or destroying restaurant property or another Team Member's property.
- Possession of hazardous or dangerous items (such as firearms, weapons, or unauthorized chemicals) on restaurant property without prior written approval.
- Fighting, bullying, or harassment of any Team Member, guest, or vendor (as defined in our Equal Employment Opportunity policy).
- Disclosure of trade secrets or confidential business information, including sales reports, financial data, marketing plans, or customer information.
- Refusing or failing to follow directions, safety procedures, or assigned job duties.
- **Excessive tardiness or absenteeism**, including failure to notify leadership in a timely manner.
- Smoking or vaping in non-designated areas.
- Working unauthorized overtime or failing to receive approval before staying beyond your scheduled shift.
- Soliciting fellow Team Members during working hours or in customer areas.
- Failure to follow the Chick-fil-A West Acres **uniform and appearance policy**.
- Use of obscene, profane, or harassing language in the workplace.
- Engaging in outside employment that interferes with your performance, attendance, or scheduling responsibilities at Chick-fil-A West Acres.
- Gambling on restaurant property.
- Lending or duplicating keys, keycards, or access codes to unauthorized persons.

Nothing in this policy is intended to limit your rights under the **National Labor Relations Act** or alter the **at-will employment** relationship, where applicable under state law.

5.12 Transfers

Chick-fil-A West Acres may transfer Team Members from one position or department to another as needed to meet restaurant operations, scheduling demands, or development opportunities. Transfers may occur **with or without prior notice**, depending on business needs or staffing requirements.

Team Members may also request a transfer to a different position or department. All such requests will be reviewed by management and approved based on performance, availability, and restaurant needs.

5.13 Workforce Reductions (Layoffs)

If necessary, and based on business needs, **Chick-fil-A West Acres** management may determine that a **reduction in force (RIF)** is required. While such decisions are never easy, they may be made due to changes in business volume, restructuring, or other operational considerations.

Chick-fil-A West Acres recognizes that a RIF can be a challenging and emotional experience for everyone involved. The restaurant will make every effort to base these decisions on sound business judgment while maintaining compassion, fairness, and respect for all affected Team Members.

Whenever possible, the restaurant will explore alternatives to workforce reduction and provide advance notice to Team Members when feasible.

6.0 General Policies

6.1 Computer Security and Copying of Software

All software programs purchased and provided by **Chick-fil-A West Acres** are to be used **solely for business purposes**, including creating, researching, and processing materials for restaurant operations. By using Chick-fil-A West Acres hardware, software, and networking systems, you accept **personal responsibility** for their appropriate use and agree to comply with this policy, all other applicable restaurant policies, and relevant **city, state, and federal laws and regulations**.

All software acquired for or on behalf of **Chick-fil-A West Acres**, or developed by Team Members or contractors while performing restaurant duties, is the **property of Chick-fil-A West Acres**. The Operator and leadership team are responsible for ensuring compliance with all software usage and licensing requirements.

Team Members **may not illegally duplicate, share, or distribute any licensed software or related documentation**. Unauthorized duplication or distribution of software can result in both **civil and criminal penalties** under the United States Copyright Act and may lead to disciplinary action, up to and including termination of employment.

Any software purchase must be **approved in advance by management** and obtained only through a **vendor authorized by the Operator**. Software may be used on local networks or multiple devices only when explicitly permitted by applicable license agreements entered into by Chick-fil-A West Acres.

Team Members are strictly prohibited from **copying, transferring, or sharing software** with any individuals or organizations outside the restaurant, including guests, contractors, or vendors, unless specifically authorized by the Operator.

6.2 Employer Sponsored Social Events

Fivetwo LLC, doing business as Chick-fil-A West Acres (the "Company"), may hold periodic social events for **Team Members**. Attendance at these events is voluntary and does not constitute part of your work-related duties. Any exceptions to this policy must be approved in writing and signed by a **Manager or the Owner/Operator** prior to the event.

The Company is committed to maintaining a safe, family-friendly, and professional environment at all times. As such, **alcoholic beverages are strictly prohibited at all Company-sponsored events**, whether held on or off Company premises. Team Members are expected to conduct themselves in a respectful and responsible manner that reflects the values of Chick-fil-A.

6.3 Employer-Provided Cell Phones/Mobile Devices

Fivetwo LLC, doing business as Chick-fil-A West Acres (the "Company"), **may or may not issue** certain **Team Members** a Company-owned cell phone or mobile device for work-related communications and operations.

If you drive a vehicle during your employment, you may not use any cell phone, mobile device, or other communication device while driving unless the device is equipped or configured with a **hands-free** listening/speaking option, and you in fact utilize the hands-free feature.

The Company owns and retains all rights to cell phones or mobile devices issued to Team Members, including all passwords controlling access to them. Team Members may not change those passwords without prior authorization. At the time of employment termination, all such equipment and passwords must be returned to the Company in operable condition.

Violation of this policy may result in disciplinary action, up to and including termination of employment.

6.4 Nonsolicitation/Nondistribution Policy

Chick fil A West Acres values a harmonious work environment that promotes focus, respect, and productivity for all Team Members and guests. This policy is designed to minimize disruptions to daily operations while encouraging a professional and positive atmosphere within the restaurant.

Solicitation

For the purposes of this policy, solicitation includes activities such as selling items or services, requesting donations, or seeking support for an organization or cause. Solicitation, whether conducted verbally, in writing, or electronically, falls under this policy.

Soliciting other Team Members during their assigned working hours is not permitted. Working hours refer to times when either you or the Team Member you intend to solicit are expected to be performing job duties. You may engage in solicitation only during authorized

nonworking times, such as breaks or meals, and only if the person you are soliciting is also on nonworking time.

Distribution

To maintain a clean, safe, and organized environment, the distribution of nonwork related materials or items within working areas is prohibited at all times. Working areas do not include break areas, lunchrooms, or parking lots. Electronic distribution of materials during work hours is also not allowed.

Any material that violates **Chick fil A West Acres** Equal Employment Opportunity or Anti Harassment policies, or that knowingly spreads false information, is strictly prohibited. Non employees are not permitted to distribute materials on restaurant property under any circumstances.

Statutory Rights and Communication

This policy is not intended to restrict the legal rights of Team Members, including the right to discuss wages, hours, or other terms and conditions of employment. Open and honest communication is an important part of the culture at **Chick fil A West Acres** and is encouraged through proper channels.

Reporting Violations

If you become aware of any violation of this policy, report it promptly to your immediate leader or manager.

We appreciate your cooperation in maintaining a respectful, safe, and focused work environment for everyone at **Chick fil A West Acres**.

6.5 Off-Duty Use of Employer Property or Premises

Team Members may not use **Chick fil A West Acres** property for personal purposes during working time. All restaurant property must be treated with care and respect. Team Members are responsible for returning all property in good condition and may be held accountable for repairing or replacing any property that is damaged due to personal use or negligence.

This includes, but is not limited to, the use of copy machines, computers, restaurant equipment, Chick fil A products, or office supplies for personal use without prior authorization from management.

It is the policy of **Chick fil A West Acres** to limit and monitor the use of restaurant facilities during off duty or nonworking hours. Team Members are prohibited from using any part of the restaurant or its equipment during off duty or nonworking hours without written consent from their manager or supervisor.

If you are granted permission to use restaurant facilities during nonworking hours, you may be required to sign in and sign out using a log maintained by management.

All Team Members are expected to respect restaurant property and to use it only for authorized and business related purposes.

6.6 Personal Appearance

Your personal appearance is a reflection of the reputation, integrity, and public image of **Chick fil A West Acres**. All Team Members are required to report to work neatly groomed and dressed in a way that projects professionalism, cleanliness, and respect.

You are expected to maintain personal hygiene consistent with broadly accepted community standards. This includes wearing clean clothing, practicing good grooming, and choosing attire appropriate for the workplace and the tasks you perform. Depending on your role, this may include wearing a uniform or required safety apparel. Use common sense and good judgment in determining what to wear to work.

Fragrant products, including perfumes, colognes, and scented body lotions or hair products, should be used sparingly out of respect for others who may have sensitivities or allergies.

In line with applicable law, **Chick fil A West Acres** will reasonably accommodate Team Members' disabilities or sincerely held religious beliefs that make full compliance with the appearance policy difficult, unless doing so would impose an undue hardship. If you believe you require accommodation, please contact your manager or supervisor.

Failure to adhere to these personal appearance standards may result in being sent home to groom or change attire. Repeated violations may lead to disciplinary action, up to and including termination of employment.

Uniform

Appearance and Uniform Policy

Your appearance represents both your professionalism and the values of **Chick fil A West Acres**. We believe that excellence begins with how we present ourselves — clean, neat, and ready to serve. Maintaining a professional image ensures food safety, promotes guest confidence, and reflects our shared commitment to care and hospitality.

Uniforms

All Team Members are required to arrive **in full uniform** and remain in full uniform at all times while in the restaurant. **Team Members who arrive without a complete uniform will not be allowed to clock in** until they are in full compliance. Uniforms must always be **clean, pressed, and well maintained**.

Uniforms may not be stored at the restaurant. Each Team Member is responsible for caring for their uniform and ensuring it meets appearance standards.

- **Full-time Team Members** will receive **two complete uniforms** at no cost.
- **Part-time Team Members** (working fewer than 30 hours per week) will receive **one complete uniform** at no cost.
- Additional uniform pieces may be purchased through **payroll deduction**. Price lists are available upon request.
- Any lost or damaged uniform items must be replaced at the Team Member's own expense.
- **Team Members are required to purchase their own black, slip-resistant shoes.**

Uniform Requirements:

- Name Tag
- Uniform Shirt (tucked in at all times; maternity tops excluded)
- Uniform Pants (properly hemmed and fitted at the waist)
- Uniform Belt
- Black Socks
- Hat or Visor (if applicable)
- Black, slip-resistant shoes (solid color, closed toe – purchased by Team Member)

Hair and Grooming

Hair must comply with **Health Department standards** and be kept clean, neat, and professional. Hair restraints (hats, visors, hairnets, or Chick-fil-A chef hats) must be used to prevent loose hair from falling into food.

- Hair that falls around the face must be tied back securely with simple hair accessories (no beads, jewels, or decorative parts).
- Hair color must be **natural**; unnatural colors (pink, blue, green, etc.) are not permitted.
- Extreme hairstyles such as mohawks, shaved designs, or logos are not permitted.
- False eyelashes are not permitted.
- **Sideburns** must not extend below the earlobe and should maintain a consistent width.

Facial Hair

Facial hair must be **short, neat, and well defined**. Acceptable styles include:

- Short, neatly groomed mustaches
- Short, neatly trimmed goatees with clear definition
- Short, full beards with defined cheek and necklines (no longer than ½ inch in length, equivalent to a #4 trimmer guard)

Unacceptable styles include:

- Chin straps, handlebar mustaches, mutton chops, or designs with shaved lines or patterns
- Patchy or unkempt facial hair

Team Members growing facial hair must still maintain a clean, intentional appearance during the process.

Jewelry

- **Earrings:** Only small studded earrings are permitted. No hoops or dangling earrings.
- **Nose Piercing:** One small, simple metal stud or clear/flesh-toned retainer is allowed.
- **Other Piercings:** No visible body piercings are permitted.
- **Rings:** Limited to one plain band (such as a wedding ring). Gloves must cover rings when working with food.
- **Other Jewelry:** Excessive bracelets or necklaces are not permitted. Leadership reserves final discretion on appropriateness.

Tattoos and Nail Care

- **Visible tattoos** are allowed on arms, hands, and legs but must not contain **offensive or inappropriate language or imagery**. Tattoos are **not permitted on the neck or face**.
- **Nail polish** is allowed for women if it is **neutral or light in color** and well maintained.
- **Artificial nails or excessively long nails** are not allowed for food safety reasons.

Enforcement

The **Owner/Operator** and **Leadership Team** have final authority on all appearance matters. Team Members not in compliance with this policy will be **sent home and may not clock in** until corrections are made. Continued failure to follow these standards may result in **disciplinary action, up to and including termination**.

6.7 Personal Cell Phone/Mobile Device Use

Chick fil A West Acres recognizes that Team Members may bring personal cell phones and other mobile devices such as smartphones, tablets, or laptops to the workplace. However, personal devices must never interfere with job performance, guest service, safety, or productivity.

The use of personal cell phones or mobile devices while on the clock or during working hours is **strictly prohibited** unless prior approval is given by the Owner Operator or a designated manager. Team Members are expected to remain fully focused on serving guests and supporting the team at all times.

Personal devices may be used only during **authorized breaks or meal periods**, and only in **designated break areas**. During these times, Team Members should use their devices in a courteous and respectful manner, keeping volume low and avoiding content that could be disruptive or inappropriate.

Team Members are not permitted to make or receive phone calls, send text messages, or use social media while working, in uniform, or in guest view, unless it is directly related to their work duties and approved by management. Repeated violations of this policy may result in disciplinary action, up to and including termination of employment.

The use of any personal device's **camera or recording function** on restaurant property is strictly prohibited unless authorized in writing by the Owner Operator or required by law.

Team Members must protect all confidential and proprietary information of **Chick fil A West Acres** and refrain from sharing or storing sensitive information on personal devices.

While operating a vehicle for work purposes, Team Members must turn off their personal cell phones or use approved hands free equipment only in compliance with North Dakota law. Texting, browsing, or calling while driving on work time is not permitted.

Team Members are not allowed to connect personal devices to the restaurant's network, Wi Fi, or other company equipment without written approval from the Owner Operator.

Nothing in this policy is intended to restrict Team Members from engaging in legally protected concerted activities as provided under the

National Labor Relations Act.

Failure to comply with this policy will result in corrective action consistent with Chick fil A West Acres disciplinary procedures, which may include termination of employment.

6.8 Personal Data Changes

It is each Team Member's responsibility to provide **Chick fil A West Acres** with accurate and up to date contact information, including your current mailing address, telephone number, and email address if applicable. You must also notify management of any changes to your **tax withholding status** or other employment records.

Failure to keep this information current may result in delays or loss of important communication, benefits, or documents such as W-2 forms and pay information.

To update your contact or tax information, please notify your **Leader or the Director of Operations** as soon as possible so the necessary updates can be made in the system.

6.9 Security

All Team Members share responsibility for maintaining a safe and secure environment at **Chick fil A West Acres**. Each person plays an important role in protecting the restaurant, our guests, and fellow Team Members.

At the end of your shift, ensure that all desks, lockers, storage areas, and doors containing valuable or sensitive materials are properly locked. Immediately report any lost or stolen keys, badges, or access devices to your manager or supervisor.

Do not share or discuss details about the restaurant's security systems, alarm codes, passwords, or other confidential information with anyone outside of **Chick fil A West Acres**.

If you observe or become aware of any suspicious activity, unsafe behavior, or potential security risks involving a Team Member, guest, or vendor, notify your manager or supervisor right away.

The safety and security of **Chick fil A West Acres** depends on everyone's vigilance and cooperation. Thank you for doing your part to help protect our team and guests.

6.10 Social Media

Chick fil A West Acres recognizes that social media is an important part of modern communication and provides meaningful opportunities to connect with others. However, social media use also carries responsibilities. What you post online can affect your personal reputation as well as the reputation of Chick fil A West Acres.

Improper or careless use of social media can:

- Risk the confidentiality of restaurant or guest information
- Damage the reputation and brand of Chick fil A West Acres
- Lead to claims of harassment, discrimination, or other violations of law
- Reduce productivity or create distractions during work hours

To minimize risks and maintain our standard of excellence, all Team Members are expected to follow the guidelines below.

Definition of Social Media

For this policy, "social media" includes all online communication platforms such as personal websites, social networking sites, blogs, podcasts, chat rooms, messaging apps, and any other form of internet posting or content sharing.

Use Good Judgment

Chick fil A West Acres respects each Team Member's right to personal expression. However, you should remember that anything you post online may be viewed by guests, fellow Team Members, supervisors, or members of the community. Even personal posts can reflect on the restaurant and the Chick fil A brand.

When using social media, always represent yourself and the restaurant with integrity, professionalism, and kindness. If you identify yourself as a Team Member, make it clear that your views are your own and that you do not speak on behalf of Chick fil A West Acres.

Guidelines for Posting

When posting on social media, whether personal or work related:

- Protect all trade secrets, proprietary information, and confidential restaurant data.
- Do not make statements that are false, misleading, defamatory, or harassing.
- Never make or imply threats of violence or harm.
- Do not use Chick fil A email addresses to register for personal social media accounts.
- Respect copyright, trademark, and all third party rights.
- Avoid linking personal social media accounts to the restaurant's official pages or portraying personal opinions as official restaurant statements.
- When discussing the restaurant publicly, identify opinions as your own and not those of Chick fil A or its Operator.

Using Social Media at Work

Use of personal social media during work hours is not permitted. Team Members may only access social media for restaurant related purposes when explicitly authorized by the Owner Operator or a designated manager.

During breaks or meal periods, social media use should be appropriate, discreet, and respectful of others nearby.

Media Contacts

Only the Owner Operator or an authorized representative may speak to the media on behalf of Chick fil A West Acres. Team Members who are contacted by news outlets, bloggers, or other media representatives must refer all inquiries to management.

Retaliation

Retaliation against any Team Member who reports a violation of this policy or participates in an investigation is strictly prohibited. Acts of retaliation may result in disciplinary action, up to and including termination.

Violations

Failure to follow this policy may result in corrective action, up to and including termination of employment.

This policy does not limit any Team Member's rights to discuss wages, hours, or other terms and conditions of employment. All Team Members have the right to engage in or refrain from such protected activities.

6.11 Third Party Disclosures

From time to time, **Chick fil A West Acres** may be involved in news stories, community events, or potential legal proceedings. When these situations occur, outside individuals such as attorneys, former Team Members, journalists, or law enforcement agencies may attempt to contact Team Members for information.

If you are contacted by anyone outside the restaurant regarding an incident, investigation, or legal matter, **do not speak on behalf of Chick fil A West Acres**. Politely refer all such inquiries to the **Owner Operator or Director of Operations**, who are authorized to provide official responses.

If you are unsure how to handle a contact of this nature, or if you are asked to share information about the restaurant, a guest, or another Team Member, immediately notify your supervisor or the Owner Operator for guidance.

This policy helps ensure that all communication remains accurate, professional, and consistent with Chick fil A's values and legal obligations.

6.12 Use of Company Technology

This policy provides **Chick fil A West Acres** Team Members with the guidelines for using the restaurant's information technology (IT) resources and communication systems. These resources are provided to support daily operations, promote efficiency, and protect the integrity of restaurant data and communication.

This policy applies to all IT resources and communication systems owned, managed, or made available by **Chick fil A West Acres**, as well as any access to these systems using personal devices. This includes, but is not limited to, email systems and accounts, internet and intranet access, telephones and voicemail systems including mobile and restaurant phones, printers, photocopiers, scanners, fax or e-fax

systems, modems, computers, laptops, tablets, and other hardware or software, network and security devices including key fobs and access cards, and closed-circuit television (CCTV) or other physical security systems.

All **Chick fil A West Acres** IT resources and communication systems are to be used for business purposes only unless otherwise authorized by management or required by law. All content created, transmitted, or stored using restaurant IT systems is considered the property of **Chick fil A West Acres**. Therefore, Team Members should not expect privacy in any message, file, data, document, conversation, social media post, or any form of electronic communication conducted through or stored on restaurant systems.

The restaurant reserves the right, in accordance with applicable law, to monitor, review, or intercept all data transmitted or received through its systems without prior notice or consent. Monitoring may occur for reasons such as protecting trade secrets, proprietary information, and other confidential business data, ensuring the proper use and performance of IT systems, supporting business continuity and data management during employee absences, and preventing unauthorized or illegal activities. The use of passwords or encryption does not create a right to privacy. Team Members should not use restaurant IT resources for any matter they wish to keep private.

Team Members must safeguard all IT resources, including login credentials, passwords, and access cards. Sharing passwords or granting unauthorized access to any restaurant system is strictly prohibited. Sensitive data such as customer information, financial records, or employee files must never be stored on personal devices or transmitted outside approved systems.

Any misuse of **Chick fil A West Acres** IT resources or communication systems may result in corrective action, up to and including termination of employment. In cases involving illegal activity, the restaurant may also notify law enforcement authorities.

6.13 Workplace Privacy and Right to Inspect

All property belonging to **Chick fil A West Acres**, including but not limited to lockers, phones, computers, tablets, desks, work areas, vehicles, and machinery, remains under the control of the restaurant and may be inspected at any time without notice and without the presence of the Team Member.

Team Members should have no expectation of privacy in any area or item provided by **Chick fil A West Acres** for work purposes. The restaurant reserves the right to open, inspect, or search any company property at its discretion to ensure safety, security, and compliance with policies.

Chick fil A West Acres assumes no responsibility for the loss of or damage to any personal property kept on restaurant premises, including items stored in lockers, desks, or personal work areas. Team Members are encouraged to keep personal belongings of value secured and to bring only essential personal items to work.

7.0 Benefits

7.1 Jury Duty Leave

Chick-fil-A West Acres encourages employees to fulfill their civic duties related to jury duty. If you are summoned for jury duty, notify your Owner/Operator as soon as possible to make scheduling arrangements.

Generally, time spent on jury duty is unpaid. In such case, exempt employees will not incur any deduction in pay for a partial week's absence due to jury duty.

If applicable law requires the Company to compensate you for your time spent on jury duty, you will be paid accordingly.

You may substitute any portion of your unpaid jury duty leave with appropriate paid leave.

The Company reserves the right to require employees to provide proof of jury duty service to the extent authorized by law.

The Company will not retaliate against employees who request or take leave in accordance with this policy.

If you have any questions regarding this policy, contact [\[\[appropriate person or department\]\]](#).

7.2 Bereavement Leave

Chick fil A West Acres understands that the loss of a loved one is a difficult time and desires to support Team Members with compassion and understanding. The restaurant allows time off for bereavement so that Team Members may attend funeral services, support family members, and take personal time to grieve.

Bereavement leave at **Chick fil A West Acres** will be **unpaid**. Team Members who have **accrued paid time off (PTO)** may choose to

use their available PTO hours to cover all or part of their bereavement leave. Team Members who do not have PTO may take the approved time off as **unpaid leave**.

The amount of time off will be determined **on a case-by-case basis** by the **Owner Operator**, based on the relationship of the deceased to the Team Member, the Team Member's schedule, and the operational needs of the restaurant.

For purposes of this policy, an **immediate family member** includes a spouse, child (including stepchild or foster child), parent (including stepparent or foster parent), sibling, or grandparent. The same definition applies to the immediate family of the Team Member's spouse.

Team Members should notify their leader or manager **as soon as possible** after learning of the need for bereavement leave. Documentation may be requested to support the request.

The **Owner Operator** will review each bereavement request individually and reserves the right to determine the length of time off in a fair and consistent manner.

7.3 COBRA

The **Consolidated Omnibus Budget Reconciliation Act (COBRA)** allows eligible **Chick fil A West Acres** Team Members and their dependents to continue their health insurance coverage under the restaurant's health plan when a qualifying event causes a loss of eligibility.

Qualifying events include resignation, termination of employment, reduction in work hours, a leave of absence, divorce or legal separation, the death of the covered Team Member, entitlement to Medicare, or when a dependent child no longer meets eligibility requirements under the plan.

Team Members who experience a qualifying event will receive information outlining their rights and options under COBRA. To learn more about your COBRA rights or to request continuation of coverage, contact the **Director of Operations or the Owner Operator** for assistance.

7.4 Family and Medical Leave (FMLA)

Family and Medical Leave Act (FMLA)

In accordance with the **Family and Medical Leave Act of 1993 (FMLA)**, **Chick fil A West Acres** provides eligible Team Members with up to 12 or 26 weeks of unpaid, job-protected leave within a 12-month period for certain qualifying circumstances.

Eligibility

To qualify for FMLA leave, you must:

1. Have worked for **Chick fil A West Acres** for at least 12 months, which do not need to be consecutive.
2. Have worked at least 1,250 hours during the 12 months immediately preceding the start of leave.
3. Be employed at a location where the restaurant employs at least 50 employees within 75 miles.

Reasons for Leave

Eligible Team Members may take up to **12 weeks** of unpaid leave in a 12-month period for any of the following reasons:

- The birth of a child and to care for that child (must be completed within one year of birth).
- The adoption or foster care placement of a child (must be completed within one year of placement).
- To care for a spouse, child, or parent with a serious health condition.
- To care for your own serious health condition that prevents you from performing the essential functions of your job.
- For a qualifying exigency related to a spouse, child, or parent who is a covered military member on active duty or has been notified of an impending call to covered active duty.

Eligible Team Members may take up to **26 weeks** of unpaid leave in a single 12-month period to care for a covered service member (spouse, child, parent, or next of kin) with a serious injury or illness incurred in the line of duty.

Definitions

- **Spouse** means a husband or wife as recognized under state law.
- **Child** includes a biological, adopted, foster, or stepchild, a legal ward, or a child of a person standing in loco parentis, who is under 18 years of age or is 18 or older and incapable of self-care due to a disability.
- **Parent** includes a biological, adoptive, step, or foster parent, or any individual who stood in loco parentis to the employee when they were a child.
- **Next of kin** means the closest blood relative of the covered service member, as defined under FMLA.

Notice Requirements

If the need for leave is foreseeable (such as for childbirth, adoption, or planned medical treatment), you must provide at least **30 days' notice**. If 30 days' notice is not possible, notify management as soon as practical—generally within one or two business days of learning of your need for leave.

When possible, Team Members should coordinate intermittent or reduced schedule leave with their manager to minimize disruption to operations. Failure to provide appropriate notice may delay or deny approval of leave.

Certification

If leave is requested for your own serious health condition or that of a family member, you must provide **medical certification** from a healthcare provider. The restaurant will provide the necessary forms and instructions. Certification must generally be provided within 15 days of the request for leave. Additional certification or recertification may be required if circumstances change.

Paid Leave Utilization

FMLA leave is **unpaid**. However, Team Members who have accrued **Paid Time Off (PTO)** may choose to use available PTO to cover all or part of the FMLA leave period. The substitution of PTO does not extend the total duration of FMLA leave.

Leave Increments and Intermittent Leave

If medically necessary, FMLA leave may be taken intermittently or on a reduced work schedule. During such leave, your pay will be reduced proportionately based on hours not worked. If foreseeable, **Chick fil A West Acres** may temporarily reassign you to another position that better accommodates the leave schedule while maintaining equivalent pay and benefits.

Fitness for Duty

If you take leave due to your own serious health condition, you must provide a **fitness-for-duty certification** from your healthcare provider before returning to work. You may not resume work until this certification is received.

Health Insurance

Chick fil A West Acres will continue your health insurance coverage during FMLA leave on the same terms as if you were actively employed. You must continue to pay your portion of the premium. Failure to make payments may result in a lapse of coverage after a 30-day grace period. If you do not return to work following leave, the restaurant may require repayment of premiums paid on your behalf unless your failure to return is due to circumstances beyond your control.

Reinstatement

Upon returning from FMLA leave, you will generally be reinstated to your previous position or an equivalent position with the same pay, benefits, and conditions of employment. You will not lose benefits accrued prior to taking leave.

Spouses Working for Chick fil A West Acres

If both you and your spouse are employed by **Chick fil A West Acres**, you are collectively entitled to a combined total of 12 weeks of leave for the birth or placement of a child or to care for a parent with a serious health condition. You may also take a combined total of 26 weeks to care for a covered military service member.

Failure to Return

If you fail to return to work after your approved leave period or fail to request an extension before your leave expires, you will be considered to have voluntarily resigned.

Outside Employment

While on FMLA leave, Team Members may not engage in other employment without written approval from the **Owner Operator**. Engaging in unauthorized employment while on leave may result in disciplinary action, up to and including termination.

Compliance with State and Local Laws

Where state or local family leave laws provide greater rights than FMLA, **Chick fil A West Acres** will comply with the law most favorable to the Team Member.

Abuse of Leave

Providing false information or misusing leave may result in disciplinary action, up to and including termination of employment.

Non-Retaliation

Chick fil A West Acres will not retaliate against any Team Member for requesting or taking leave under this policy.

Employee Rights Notice

A copy of the official "**Your Employee Rights Under the Family and Medical Leave Act**" notice is attached as an addendum at the end of this handbook.

7.5 Holidays

Chick fil A West Acres recognizes that holidays are an important time for family, rest, and community. While the restaurant may close or operate on adjusted hours on certain holidays, **no paid holidays are provided**.

Team Members who are scheduled to work on a holiday will be compensated at their **regular rate of pay** in accordance with federal and state law. If the restaurant is closed for a holiday, Team Members will not receive pay for that day unless they choose to use available **Paid Time Off (PTO)** if eligible.

Holidays falling on weekends or regular days off may or may not affect the restaurant's operating schedule. Team Members should check with their manager or supervisor for specific details regarding scheduling during holiday periods.

7.6 Military Leave (USERRA)

Chick fil A West Acres complies with all applicable federal and state laws regarding military leave and reemployment rights. A military leave of absence will be granted to eligible members of the uniformed services in accordance with the **Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA)**, as amended, and any applicable North Dakota state laws.

Team Members who are called to, or volunteer for, military service must provide appropriate documentation supporting the need for leave to their **manager or supervisor** as soon as possible.

Upon completion of military service, Team Members will be reinstated to their previous position or to a comparable position with the same pay, benefits, and seniority, consistent with the requirements of USERRA and state law. Team Members must notify their manager of their intent to return to work within the timeframe required by law.

For additional information regarding eligibility, compensation, benefits, and reinstatement after returning from military leave, Team Members should contact the **Owner Operator or Director of Operations**.

7.7 Paid Time Off (PTO)

Chick fil A West Acres provides **Paid Time Off (PTO)** to eligible leadership Team Members as part of our commitment to rest, renewal, and maintaining a healthy work-life balance.

PTO is available **only to Assistant Directors and Directors**. The amount of PTO granted will be **determined and discussed directly with the Owner Operator** based on the individual's position, responsibilities, and tenure.

PTO will be **calculated at the Team Member's regular hourly rate** and will not count toward overtime. PTO hours do not accumulate toward total hours worked for overtime calculations.

PTO does **not roll over** into the next calendar year. Any **unused PTO may be cashed out at the end of the year** at the Team Member's current hourly rate.

All PTO requests must be submitted in advance and approved by the **Owner Operator**, taking into account the needs of the restaurant and leadership coverage.

Team Members outside of Assistant Director and Director positions are **not eligible** for PTO benefits at this time.

7.8 Personal Leave of Absence

Personal Leave of Absence

Chick fil A West Acres understands that there may be times when a Team Member needs to take time away from work for personal reasons not covered under other leave policies. In such cases, a Team Member may request an unpaid personal leave of absence.

Eligibility

All regular full-time Team Members who have been employed for at least **six months** may apply for an unpaid personal leave of absence. Approval is not guaranteed and will depend on the needs of the business, past attendance, and overall job performance.

Requesting Leave

Requests for an unpaid personal leave of absence must be submitted in writing to the **Owner Operator or Director of Operations** at least **two weeks in advance**, when practical. In emergency situations, notice should be given as soon as possible. The request must include the reason for the leave and the anticipated start and return dates.

Approval of a personal leave is entirely at the discretion of **Chick fil A West Acres** and may be denied or granted for any reason. Team Members may be required to use any available **Paid Time Off (PTO)** before beginning an unpaid personal leave.

During an unpaid personal leave of absence, **no PTO, seniority, or other benefits will accrue**, and **holidays that occur during the leave will not be paid**.

Extension of Leave

Team Members must return to work on the originally approved return date. If additional time off is needed, a written request for extension must be submitted at least **five days prior** to the scheduled return date. Extensions will be considered on a case-by-case basis and are not guaranteed. Failure to return to work on time, without an approved extension, will be treated as a voluntary resignation.

Return to Work

When possible, **Chick fil A West Acres** will make an effort to reinstate Team Members returning from an approved leave to their previous position. However, reinstatement is **not guaranteed**, and available positions may vary depending on business needs. If the Team Member refuses an offer of reinstatement to a comparable position, their employment will be considered voluntarily terminated.

Outside Employment

While on a personal leave of absence, Team Members are not permitted to engage in outside employment or self-employment without **written permission from the Owner Operator**. Engaging in outside work without approval may result in disciplinary action, up to and including termination.

7.9 Workers' Compensation Insurance

Chick fil A West Acres provides **Workers' Compensation Insurance** in accordance with North Dakota state law. This no-fault system ensures that Team Members who experience a work-related injury or illness receive necessary medical care, wage replacement, and rehabilitation benefits. Coverage is fully paid for by the restaurant and applies to all eligible Team Members.

If you are injured on the job, **no matter how minor the injury may seem**, you must report it **immediately** to your **manager or supervisor**. Prompt reporting is essential to ensure that you receive proper medical care and that your claim for benefits is not delayed or jeopardized. Failure to report an injury within a reasonable time may result in loss of eligibility for benefits under state law.

After reporting the injury, you must complete an **accident report** describing the incident and the circumstances surrounding it. Your manager will assist you in completing any required documentation for Workers' Compensation purposes.

If medical treatment is required, you may be asked to provide documentation from a healthcare provider confirming your ability to return to work. A **medical release** must be submitted before resuming your duties at **Chick fil A West Acres**.

All workplace injuries and claims will be handled confidentially and in full compliance with North Dakota Workers' Compensation laws and regulations.

8.0 Safety and Loss Prevention

8.1 Drug and Alcohol Policy

Chick fil A West Acres is committed to providing a safe, healthy, and productive work environment for all Team Members. To support this commitment, the restaurant maintains a **strict drug and alcohol-free workplace policy**. Being under the influence of alcohol, illegal drugs, or other impairing substances while on the job poses serious safety risks and will not be tolerated under any circumstance.

Prohibited Conduct

The following activities are strictly prohibited while on duty, conducting restaurant business, or while on **Chick fil A West Acres** property, whether or not you are actively working:

- Using, abusing, or being under the influence of alcohol, illegal drugs, or impairing substances.
- Possessing, selling, purchasing, transferring, or transporting illegal or unauthorized drugs, including prescription medication not prescribed to the individual, or any drug-related paraphernalia.
- The illegal use or abuse of prescription drugs.

While certain states have legalized the use of marijuana for medical or recreational purposes, it remains illegal under federal law. Therefore, **Team Members may not consume, possess, or be under the influence of marijuana while on duty or at work**. If you have a valid medical marijuana prescription, contact the **Owner Operator or Director of Operations** to discuss possible accommodations under the restaurant's disability policy.

Nothing in this policy restricts the lawful use of over-the-counter or prescribed medication, provided it does not impair job performance, judgment, or the safety of others. If you are taking any medication that could affect your ability to work safely, it is your responsibility to notify your manager before beginning your shift.

Employer-Sponsored Events

From time to time, **Chick fil A West Acres** may host social or business-related events where alcohol is present. Team Members who choose to consume alcohol at such events must do so responsibly and are expected to conduct themselves in a professional and respectful manner at all times.

Treatment and Rehabilitation

Chick fil A West Acres encourages Team Members struggling with substance abuse to seek help. The restaurant may provide information about treatment resources or rehabilitation programs upon request. Continued employment may be considered following successful completion of treatment, provided workplace safety and performance concerns are fully addressed.

Violations

Any violation of this policy—including being under the influence, possessing, or distributing drugs or alcohol on company property or during work hours—will result in **disciplinary action, up to and including termination of employment**.

8.2 General Safety

It is the responsibility of all **Team Members of Fivetwo LLC, doing business as Chick-fil-A West Acres** (the "Company"), to help maintain a healthy and safe work environment. Team Members must promptly report any health or safety hazards and follow all Company health and safety rules. Failure to do so may result in disciplinary action, up to and including termination of employment.

The Company also requires that all occupational illnesses or injuries be reported to your **Manager or Supervisor** as soon as reasonably possible. An occupational illness or injury report form must be completed for each reported incident.

8.3 Workplace Tobacco Usage

Fivetwo LLC, doing business as Chick-fil-A West Acres (the "Company"), is concerned about the detrimental effects of smoking, vaping, alcohol consumption, and secondhand smoke inhalation.

Prohibited Smoking and Tobacco Use

Smoking—including the use of electronic vaping products such as e-cigarettes—is strictly prohibited in the following areas:

- All Company property, including offices and workspaces.
- Company-owned or leased vehicles.
- Client and customer service areas.
- Restrooms.
- Any areas where signs are posted prohibiting smoking.
- Any other designated areas defined by the Company.

The Company also prohibits the use of smokeless tobacco products (e.g., chewing tobacco, dip, and snuff) in these same areas.

Alcohol and Smoking While Working

The use of alcohol, tobacco, vaping products, or smokeless tobacco is strictly prohibited while Team Members are working or clocked in. Team Members must not report to work under the influence of alcohol, illegal drugs, or impairing substances.

Equal Treatment

The Company will not discriminate against Team Members based on their lawful off-duty, off-premises use of tobacco or alcohol, consistent with applicable state law.

8.4 Workplace Violence

Workplace Violence Prevention and Zero Tolerance Policy

As the safety and security of our **Team Members**, vendors, contractors, customers, and the general public is in the best interests of **Fivetwo LLC, doing business as Chick-fil-A West Acres** (the "Company"), we are committed to providing a work environment free from violence, intimidation, and disruptive behavior.

Zero Tolerance Policy

The Company maintains a **zero tolerance policy** regarding workplace violence. We will not tolerate acts or threats of violence, harassment, intimidation, or disruptive behavior—whether physical or verbal—that occur in the workplace or in connection with Company business. This policy applies to all individuals, including management, Team Members, contractors, customers, and visitors.

Workplace violence includes oral or written statements, gestures, or actions that communicate a direct or indirect threat of physical harm, damage to property, or intentional behavior that may cause a person to feel threatened.

Prohibited Conduct

Examples of prohibited conduct include, but are not limited to:

- Physically injuring another person.
- Threatening to injure a person or damage property by any means (verbal, written, electronic, direct, or indirect).
- Taking action that places another person in reasonable fear of imminent harm or offensive contact.
- Possessing, brandishing, or using a firearm or other weapon on Company property or while performing Company business, except as permitted by state law.
- Violating a restraining order, order of protection, injunction against harassment, or other lawful court order.

Reporting Incidents of Violence

All Team Members are required to report immediately to their **Manager, Supervisor, or the Owner/Operator** any behavior that compromises a safe work environment. Reports will be investigated promptly and handled as confidentially as possible, with information shared only on a legitimate need-to-know basis. Full cooperation in any investigation is expected.

Violations

Any violation of this policy may result in disciplinary action, up to and including immediate termination of employment, and may also result in criminal charges.

Retaliation

The Company strictly prohibits retaliation against victims or witnesses of workplace violence. Team Members will not be disciplined for making a good-faith report of a threat or for cooperating in an investigation.

Any retaliation, interference, or obstruction in connection with the investigation of workplace violence will result in disciplinary action, up to and including termination.

If you believe you have been wrongfully retaliated against, you must report the matter immediately to your **Manager, Supervisor, or the Owner/Operator**.

9.0 Trade Secrets and Inventions

9.1 Confidentiality and Nondisclosure of Trade Secrets

As a condition of employment, all **Team Members** of **Fivetwo LLC, doing business as Chick-fil-A West Acres** (the "Company"), are required to protect the confidentiality of the Company's trade secrets, proprietary information, and commercially sensitive information. This includes, but is not limited to, financial or sales records and reports, marketing or business strategies and plans, product development, customer lists, patents, trademarks, and any other information not generally available to the public.

Access to this information will be limited to a "need-to-know" basis and must never be used for personal benefit, disclosed, or released without prior authorization from management.

If you have information that leads you to suspect that a Team Member is sharing such information in violation of this policy, or that competitors are obtaining such information, you are required to inform your **Manager or Supervisor**, or the **Owner/Operator**.

Violation of this policy may result in disciplinary action, up to and including termination of employment, and may subject the violator to civil liability.

9.2 Inventions

Any invention or creation developed, in whole or in part, during your work hours, or through the use of equipment, resources, or facilities belonging to **Fivetwo LLC, doing business as Chick-fil-A West Acres** (the "Company"), will be considered a "work for hire" and shall be the sole property of the Company.

If you intend to develop and maintain personal property rights to any invention, idea, or creation that relates in any way to the products, services, or operations of the Company, you must first obtain a written waiver of this policy. This waiver must be signed by both you and the **Owner/Operator** of the Company.

North Dakota Policies

Hiring and Orientation Policies

EEO Statement and Nonharassment Policy

Equal Opportunity Statement

Chick-fil-A West Acres is committed to the principles of equal employment. We are committed to complying with all federal, state, and local laws providing equal employment opportunities, and all other employment laws and regulations. It is our intent to maintain a work environment that is free of harassment, discrimination, or retaliation based on the following protected classes: age (40 and older), race, color, national origin, ancestry, religion, sex, sexual orientation (including transgender status, gender identity or expression), pregnancy (including childbirth, lactation, and related medical conditions), physical or mental disability, genetic information (including testing and characteristics), veteran status, uniformed servicemember status, marital status, status as a recipient of public assistance, participation in lawful activity off of **Chick-fil-A West Acres** property during nonworking hours that does not directly conflict with the **restaurant's** essential business interests, or any other status protected by federal, state, or local laws.

Chick-fil-A West Acres is dedicated to the fulfillment of this policy in regard to all aspects of employment, including, but not limited to, recruiting, hiring, placement, transfer, training, promotion, rates of pay, and other compensation, termination, and all other terms, conditions, and privileges of employment.

Chick-fil-A West Acres will conduct a prompt and thorough investigation of all allegations of discrimination, harassment, or retaliation, or any violation of the Equal Employment Opportunity Policy in a confidential manner. **Chick-fil-A West Acres** will take appropriate corrective action, if and where warranted. The restaurant prohibits retaliation against **Team Members** who provide information about, complain about, or assist in the investigation of any complaint of discrimination or violation of the Equal Employment Opportunity Policy.

We are all responsible for upholding this policy. You may discuss questions regarding equal employment opportunities with your **Director, Manager, or the Operator**.

Policy Against Workplace Harassment

Chick-fil-A West Acres has a strict policy against all types of workplace harassment, including sexual harassment and other forms of workplace harassment, based upon an individual's membership in a protected class. All forms of harassment of, or by, **Team Members**, vendors, visitors, customers, and clients are strictly prohibited and will not be tolerated.

Sexual Harassment

Sexual harassment is defined as unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature when

- (1) submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment;
- (2) submission to, or rejection of, such conduct by an individual is used as the basis for employment decisions affecting such individual; or
- (3) such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive work environment.

While it is not possible to identify every act that constitutes or may constitute sexual harassment, the following are some examples:

- Unwelcome requests for sexual favors;
- Lewd or derogatory comments or jokes;
- Comments regarding sexual behavior or another person's body;
- Sexual innuendo and other vocal activity such as catcalls or whistles;
- Obscene letters, notes, emails, invitations, photographs, cartoons, articles, or other written or pictorial materials of a sexual nature;
- Repeated requests for dates after being informed that interest is unwelcome;
- Retaliating against another for refusing a sexual advance or reporting an incident of possible sexual harassment to **Chick-fil-A West Acres** or any government agency;
- Offering or providing favors or employment benefits such as promotions, favorable evaluations, or preferred shifts in exchange for

sexual favors; and

- Any unwanted physical touching, assaults, or blocking or impeding movements.

Other Harassment

Other workplace harassment is verbal or physical conduct that insults or shows hostility or aversion toward an individual because of the individual's membership in a protected class.

Examples include but are not limited to:

- The use of disparaging or abusive words or phrases, slurs, negative stereotyping, or threatening, intimidating, or hostile acts that relate to protected categories;
- Written or graphic material that insults, stereotypes, or shows aversion or hostility toward an individual or group based on a protected category, including material posted on walls, bulletin boards, emails, or other workplace communications; and
- A display of symbols, slogans, or items that are associated with hate or intolerance toward any group.

Reporting Discrimination and Harassment

If you feel that you have witnessed or been subjected to any form of discrimination or harassment, immediately notify:

Sung Kim, Owner/Operator, sung.kim@cfafranchisee.com

or any member of directors.

Chick-fil-A West Acres strictly prohibits retaliation against any **Team Member** who, based on a reasonable belief, provides information about, complains, or assists in the investigation of any complaint of harassment or discrimination.

All complaints will be promptly and thoroughly investigated, and appropriate action will be taken where a claim has merit. Confidentiality will be maintained to the greatest extent possible.

Discipline for violations of this policy may include, but is not limited to, reprimand, suspension, demotion, transfer, or termination. If **Chick-fil-A West Acres** determines that harassment or discrimination occurred, corrective action will be taken to effectively end the behavior. As necessary, the restaurant may monitor the situation to ensure the inappropriate conduct has stopped and that no individual experiences retaliation for reporting or participating in an investigation.

Wage and Hour Policies

Accommodations for Nursing Mothers

Chick fil A West Acres supports nursing mothers and is committed to providing a comfortable and private environment for Team Members who need to express milk for their infant child. In accordance with federal and state law, the restaurant will provide **reasonable break time** for nursing mothers to express milk for up to **one year following the birth of a child**.

A designated space, other than a restroom, will be made available for expressing milk. This space will be **private, clean, shielded from view, and free from intrusion** by coworkers or guests.

Expressed milk may be stored in the **team refrigerator** or in a **personal cooler** brought from home. Team Members should clearly **label all stored containers** to avoid confusion.

Whenever possible, break time for expressing milk should be taken concurrently with existing break periods. Nonexempt Team Members must **clock in and out** for any additional time used beyond their regularly scheduled breaks. Break time may be unpaid when permitted by law.

Team Members are expected to make reasonable efforts to coordinate break times in a way that does not disrupt restaurant operations. We encourage nursing mothers to discuss the length and frequency of breaks with their **manager or supervisor** to ensure appropriate scheduling and support.

Chick fil A West Acres strictly prohibits any form of discrimination, retaliation, or interference with a Team Member's right to express breast milk in the workplace.

Meal and Rest Periods

Chick fil A West Acres is committed to providing a safe, healthy, and balanced work environment for all Team Members. The restaurant follows all applicable federal and state regulations regarding **meal and rest breaks**.

Team Members should follow the established break and meal schedules communicated by their **manager or supervisor**. All Team Members are required to **accurately record** their meal and rest periods in the timekeeping system.

If you know in advance that you may not be able to take your scheduled meal or rest break, you must inform your **manager or supervisor** as soon as possible. Likewise, if you are unable to take a break or meal period during your shift due to work demands, notify your **manager or supervisor** immediately after the missed break.

Maintaining accurate records and open communication helps ensure that all Team Members receive their required breaks and that **Chick fil A West Acres** remains in full compliance with labor laws.

Overtime

If you are a **nonexempt Team Member** at **Chick fil A West Acres**, you may be eligible for **overtime pay** in accordance with federal and state law.

All overtime must be **approved in advance and in writing** by your **manager or supervisor**. Team Members are not permitted to work overtime hours without prior authorization. Working unauthorized overtime or refusing to work scheduled overtime when requested may result in disciplinary action, up to and including termination.

At times, business needs may require overtime work. While every effort will be made to provide advance notice, there may be occasions when notice is limited due to operational demands.

Unless otherwise required by law, overtime pay is calculated at **one and one-half (1.5) times your regular hourly rate** for all hours worked **beyond 40 hours in a workweek**. Paid time off, holidays, and sick days do **not** count as hours worked when determining overtime eligibility.

Pay Period

At **Chick fil A West Acres**, the standard pay period is **biweekly** for all Team Members. Paychecks are issued **every other Friday**.

If a scheduled payday falls on a **holiday**, pay will be issued on the **preceding business day**. If payday falls on a **Saturday or Sunday**, pay will also be issued on the **preceding Friday**. In rare cases where special scheduling adjustments are required due to holidays or banking delays, Team Members will be notified in advance.

Team Members are encouraged to **review their pay statements carefully** each pay period. If you notice any discrepancies, such as missing hours, incorrect pay rates, or other errors, notify your **manager or leader immediately** so the issue can be corrected as quickly as possible.

Chick fil A West Acres is committed to ensuring that all Team Members are paid accurately and on time.

Travel Time Pay

Some **nonexempt positions** at **Chick fil A West Acres** may occasionally require travel for work-related purposes such as training, meetings, or special events. The restaurant compensates nonexempt Team Members for travel time in accordance with **federal and state labor laws**.

For purposes of this policy, the **regular workday** is considered to be **5:45 a.m. to 11:00 p.m., Monday through Saturday**, unless otherwise approved by management. Travel time that occurs during these hours will generally be **paid** in compliance with applicable wage and hour regulations.

All travel must be **approved in advance** by the **Owner Operator**, and Team Members are expected to record all travel-related hours accurately on their timecards.

General Policies

Access to Personnel and Medical Records Files

Chick fil A West Acres maintains separate personnel files and medical records files for all Team Members in accordance with federal and state privacy laws.

Medical records are stored separately and securely from other business or personnel records in a locked location that is accessible only to authorized individuals. These records contain confidential information related to a Team Member's health, medical leave, benefits coverage, or disability accommodations. Access to medical information is limited strictly to those who have a legitimate business or legal need to know, and all information is handled in compliance with applicable privacy regulations.

Supervisors and management may have access to personnel files only when making legitimate employment-related decisions, such as promotions, discipline, or scheduling.

If you wish to review your personnel or medical file, you must provide reasonable notice to the Owner Operator or Director. Reviews must take place in the presence of a Chick fil A West Acres representative to ensure the security and integrity of the files.

All requests from outside parties for information contained in a Team Member's file must be directed to the Owner Operator, who is the only individual authorized to release employment information on behalf of Chick-fil-A West Acres when required by law.

Benefits

Emergency Responder Leave

Chick fil A West Acres supports Team Members who serve their communities as **volunteer emergency responders**. In accordance with **North Dakota state law**, the restaurant will not discharge, discriminate, or take disciplinary action against any Team Member who is late or absent from work due to responding to an emergency or disaster in their capacity as a volunteer emergency responder.

A **volunteer emergency responder** includes:

- A volunteer member of the **Army National Guard or Air National Guard** of any state, or
- A volunteer civilian member of the **Civil Air Patrol**.

If you are a volunteer emergency responder, you must inform your **manager or supervisor** in advance so that appropriate documentation can be maintained.

Time missed from work while serving as a volunteer emergency responder will be **unpaid**. However, Team Members may use available **Paid Time Off (PTO)** if eligible.

Unless you are **involuntarily activated** by the National Guard, these protections do not apply if you are absent or late for **more than 20 working days in a calendar year** due to volunteer emergency service.

If you will be absent or delayed because of your service during an emergency, make **reasonable efforts to notify** management as soon as possible. **Chick fil A West Acres** may request written verification confirming the dates and times you were engaged in emergency response duties. Verification may be provided by the Department of Emergency Services, the Adjutant General's Office, the North Dakota Wing of the Civil Air Patrol, or another appropriate authority.

This policy does not apply if **Chick fil A West Acres** determines that you are an **essential employee**, meaning your role is critical to operations and your absence could cause significant harm or disruption to the restaurant. If you are designated as an essential employee:

- You will be notified that your absence for emergency response would be considered unauthorized, and
- You will receive this notification before you report for duty as a volunteer emergency responder.

In rare situations, the **Governor of North Dakota or the Adjutant General** may override this determination if they conclude that your service as a volunteer responder is essential to public safety or statewide emergency response efforts.

Witness Leave

Chick fil A West Acres understands that Team Members may occasionally be subpoenaed to appear in court as a witness. In such cases, you will be granted unpaid leave to fulfill this legal obligation.

If you receive a subpoena, notify your manager or supervisor as soon as possible so that scheduling adjustments can be made. The restaurant may request proof of the subpoena or court notice to verify the need for leave, as permitted by law.

Chick fil A West Acres will not retaliate or take any adverse action against Team Members who request or take leave in accordance with this policy.

Closing Statement

Thank you for taking the time to read through our **Chick fil A West Acres Team Member Handbook**. My hope is that it has given you a clear understanding of who we are, what we value, and how we work together as a team.

At **Chick fil A West Acres**, our goal goes beyond serving great food. We strive to create a place where people feel cared for, encouraged, and equipped to grow: both personally and professionally. Every role matters, and every person contributes to the culture we build together.

I am truly honored that you have chosen to be part of this family. Your dedication, attitude, and heart for serving others will help make our restaurant a place of joy, purpose, and excellence.

Thank you for being part of **Chick fil A West Acres**. I look forward to working alongside you as we impact our guests, our community, and one another.

Sung Kim

Owner/Operator

Chick fil A West Acres

Acknowledgment of Receipt and Review

By signing below, I acknowledge that I have received a copy of the **Chick-fil-A West Acres Employee Handbook** (the "Handbook") and that I have read it, understand it, and agree to comply with it. I understand that **Fivetwo LLC, doing business as Chick-fil-A West Acres** (the "Company"), has the maximum discretion permitted by law to interpret, administer, change, modify, or delete the rules, regulations, procedures, and benefits contained in the Handbook at any time, with or without notice. No statement or representation by a supervisor, manager, or any other employee, whether oral or written, can supplement or modify this Handbook. Changes can only be made if approved in writing by the **Owner/Operator** of the Company.

I also understand that any delay or failure by the Company to enforce any rule, regulation, or procedure contained in the Handbook does not constitute a waiver on behalf of the Company or affect the right of the Company to enforce such rule, regulation, or procedure in the future.

I understand that neither this Handbook nor any other communication by a management representative or other, whether oral or written, is intended in any way to create a contract of employment. I further understand that, unless I have a written employment agreement signed by an authorized Company representative, I am employed **"at-will"** (to the extent permitted by law) and this Handbook does not modify my "at-will" employment status.

If I am covered by a written employment agreement (signed by an authorized Company representative) or a collective bargaining agreement that conflicts with the terms of this Handbook, I understand that the terms of the employment agreement or collective bargaining agreement will control.

This Handbook is not intended to preclude or dissuade employees from engaging in legally protected activities under the National Labor Relations Act (NLRA). This Handbook is not intended to violate any local, state, or federal law. No provision or policy applies or will be enforced if it conflicts with or is superseded by any requirement or prohibition contained in federal, state, or local law or regulation. Furthermore, nothing in this Handbook prohibits an employee from reporting concerns to, filing a charge or complaint with, making lawful disclosures to, providing documents or other information to, or participating in an investigation or hearing conducted by the Equal Employment Opportunity Commission (EEOC), National Labor Relations Board (NLRB), Securities and Exchange Commission (SEC), or any other federal, state, or local agency charged with the enforcement of any laws.

This Handbook supersedes any previous handbook or policy statements, whether written or oral, issued by the Company.

If I have any questions about the content or interpretation of this Handbook, I will contact the **Owner/Operator** or designated Human Resources contact.

Signature

Date

Print Name

APPENDIX

Your Employee Rights Under the Family and Medical Leave Act

What is FMLA leave?

The Family and Medical Leave Act (FMLA) is a federal law that provides eligible employees with **job-protected leave** for qualifying family and medical reasons. The U.S. Department of Labor's Wage and Hour Division (WHD) enforces the FMLA for most employees.

Eligible employees can take **up to 12 workweeks** of FMLA leave in a 12-month period for:

- The birth, adoption or foster placement of a child with you,
- Your serious mental or physical health condition that makes you unable to work,
- To care for your spouse, child or parent with a serious mental or physical health condition, and
- Certain qualifying reasons related to the foreign deployment of your spouse, child or parent who is a military servicemember.

An eligible employee who is the spouse, child, parent or next of kin of a covered servicemember with a serious injury or illness **may take up to 26 workweeks** of FMLA leave in a single 12-month period to care for the servicemember.

You have the right to use FMLA leave in **one block of time**. When it is medically necessary or otherwise permitted, you may take FMLA leave **intermittently in separate blocks of time, or on a reduced schedule** by working less hours each day or week. Read Fact Sheet #28M(c) for more information.

FMLA leave is **not paid leave**, but you may choose, or be required by your employer, to use any employer-provided paid leave if your employer's paid leave policy covers the reason for which you need FMLA leave.

Am I eligible to take FMLA leave?

You are an **eligible employee** if **all** of the following apply:

- You work for a covered employer,
- You have worked for your employer at least 12 months,
- You have at least 1,250 hours of service for your employer during the 12 months before your leave, and
- Your employer has at least 50 employees within 75 miles of your work location.

Airline flight crew employees have different "hours of service" requirements.

You work for a **covered employer** if **one** of the following applies:

- You work for a private employer that had at least 50 employees during at least 20 workweeks in the current or previous calendar year,
- You work for an elementary or public or private secondary school, or
- You work for a public agency, such as a local, state or federal government agency. Most federal employees are covered by Title II of the FMLA, administered by the Office of Personnel Management.

How do I request FMLA leave?

Generally, **to request FMLA leave you must:**

- Follow your employer's normal policies for requesting leave,
- Give notice at least 30 days before your need for FMLA leave, or
- If advance notice is not possible, give notice as soon as possible.

You **do not have to share a medical diagnosis** but must provide enough information to your employer so they can determine whether the leave qualifies for FMLA protection. You **must also inform your employer if FMLA leave was previously taken** or approved for the same reason when requesting additional leave.

Your **employer may request certification** from a health care provider to verify medical leave and may request certification of a qualifying exigency.

The FMLA does not affect any federal or state law prohibiting discrimination or supersede any state or local law or collective bargaining agreement that provides greater family or medical leave rights.

State employees may be subject to certain limitations in pursuit of direct lawsuits regarding leave for their own serious health conditions. Most federal and certain congressional employees are also covered by the law but are subject to the jurisdiction of the U.S. Office of Personnel Management or Congress.

What does my employer need to do?

If you are eligible for FMLA leave, your **employer must:**

- Allow you to take job-protected time off work for a qualifying reason,
- Continue your group health plan coverage while you are on leave on the same basis as if you had not taken leave, and
- Allow you to return to the same job, or a virtually identical job with the same pay, benefits and other working conditions, including shift and location, at the end of your leave.

Your **employer cannot interfere with your FMLA rights** or threaten or punish you for exercising your rights under the law. For example, your employer cannot retaliate against you for requesting FMLA leave or cooperating with a WHD investigation.

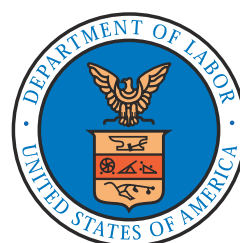
After becoming aware that your need for leave is for a reason that may qualify under the FMLA, your **employer must confirm whether you are eligible** or not eligible for FMLA leave. If your employer determines that you are eligible, your **employer must notify you in writing:**

- About your FMLA rights and responsibilities, and
- How much of your requested leave, if any, will be FMLA-protected leave.

Where can I find more information?

Call **1-866-487-9243** or visit **dol.gov/fmla** to learn more.

If you believe your rights under the FMLA have been violated, you may file a complaint with WHD or file a private lawsuit against your employer in court. **Scan the QR code to learn about our WHD complaint process.**



WAGE AND HOUR DIVISION
UNITED STATES DEPARTMENT OF LABOR

SCAN ME

